National Qualifications 2017

2017 Modern Studies

Advanced Higher

Finalised Marking Instructions

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General marking principles for Advanced Higher Modern Studies

This information is provided to help you understand the general principles you must apply when marking candidate responses to questions in this paper. These principles must be read in conjunction with the detailed marking instructions, which identify the key features required in candidate responses.

(a) Marks for each candidate response must always be assigned in line with these general marking principles and the detailed marking instructions for this assessment.

(b) Marking should always be positive. This means that, for each candidate response, marks are accumulated for the demonstration of relevant skills, knowledge and understanding: they are not deducted from a maximum on the basis of errors or omissions.

(c) If a specific candidate response does not seem to be covered by either the principles or detailed marking instructions, and you are uncertain how to assess it, you must seek guidance from your Team Leader.

(d) Where the candidate violates the rubric of the paper and answers three 30-mark questions in one section, all responses should be marked and the better mark recorded.

(e) Use the full range of marks available for each question.

(f) The detailed marking instructions are not exhaustive. Other relevant points should be credited.

(g) For credit to be given, points must relate to the question asked.

Marking principles for each question type

For each of the question types the following provides an overview of marking principles.

The types of questions used in this paper are:

- (Statement) Discuss … [30-mark extended response]
- (Research method) To what extent … [15-mark extended response]
- (Source Stimulus) To what extent … [15-mark extended response]

Questions which ask candidates to "Discuss" (Questions 1-3, 6-8 and 11-13)
These questions require candidates to explore ideas about a contemporary* issue. Candidates will analyse, synthesis and evaluate views and evidence to support a line of argument, leading to a conclusion.

Candidates will support their line of argument by drawing on their knowledge and understanding of the issue. They will include comparison of the issue in the UK and Scotland with relevant international examples.

Questions which ask "To what extent" – Research Methods questions (Questions 4, 9 and 14)
Candidates will draw on their knowledge and understanding of social science research to make an overall judgement on the suitability of given research methods.

Candidates can be credited in a number of ways; however, they would be expected to include the following:

- analysis of the key ethical/practical aspects of using the research method in a given scenario
- evaluation of the relative suitability of research methods for researching a given scenario, supported with contemporary/relevant evidence
- supporting knowledge about Social Science research methods
- a line of argument leading to an overall judgement on the suitability of a research method

Questions which ask "To what extent" – Source Stimulus questions (Questions 5, 10 and 15)
Candidates will draw on their knowledge and understanding of social science research to make an overall judgement on the potential trustworthiness of a source.

Candidates can be credited in a number of ways; however, they would be expected to include the following:

- analysis of the source to identify key aspects* which affect validity/reliability
- evaluation of the reliability/validity of the source in the context of Social Science research, supported with contemporary/relevant evidence
- supporting knowledge about conducting Social Science research
- a line of argument leading to an overall judgement.

*Key aspects can be, for example:

- provenance
- source evidence
- source errors
- omissions from the source
- bias
- specific issues relating to the source
- any other relevant point

*'Contemporary' refers to the extent to which something is up-to-date.
With regards to viewpoints or arguments, this represents the most relevant, or currently accepted, thinking. Therefore, while viewpoints on Scottish independence are likely to change very quickly, contemporary thinking about the effects of inequality may include theorists who wrote decades ago.

With regard to evidence, it should also be up-to-date. For example, referring to HM Chief Inspector of Prisons' Annual Report for 2007/08 may be considered out-of-date unless there is a specific, relevant point to be made from that year; or a trend/pattern/comparison is being established.

Criterion marking grids for each question type
The following tables show how marks will be awarded against criteria. Where mark ranges are specified, a response which fully meets the descriptor will be awarded the higher mark. A response which only partially meets the descriptor will be awarded the lower mark.

30 mark questions (Questions 1-3, 6-8 and 11-13)

Analysis
Analysis involves identifying parts, the relationship between them, and their relationships with the whole. It can also involve drawing out and relating implications. An analysis mark should be awarded where a candidate uses their knowledge and understanding/a source, to identify relevant parts (eg of an idea, theory, argument) and clearly show at least one of the following links:

- links between different parts
- links between part(s) and the whole
- links between part(s) and related concepts
- similarities and contradictions
- consistency and inconsistency
- different views/interpretations
- possible consequences/implications
- understanding of underlying order or structure

0 marks	1-2 marks	3-4 marks	5-6 marks	7-8 marks
No evidence of analysis – purely descriptive response *or* Analysis is not at all relevant to the question For analytical comments to be relevant they must directly address either the question; or issues, arguments or evidence which the question addresses.	Candidates will make relevant analytical comments but: • in the context of a candidate's answer these may be key or most relevant aspects	Candidates will make relevant analytical comments and: • in the context of a candidate's answer these are key or most relevant aspects • includes relevant and contemporary supporting evidence	Candidate's analysis meets the requirements for 4 marks and in addition: • analytical comments are linked to evaluative comments • includes relevant and contemporary supporting evidence from an international comparator country Overall, analysis shows understanding of the question and its implications, by inclusion of sufficient key or most relevant aspects	Candidate's analysis meets the requirement for 6 marks and in additions: • analytical comments are integrated in-depth with international comparison • analytical comments clearly integrate the ideas/arguments of others with the candidate's own Overall, analysis shows an in-depth understanding of the question and supports a convincing line of argument.

Comparison Comparison involves making a judgement between two (or more) entities in order to show similarity or difference. Candidates must draw out key similarities/differences and show the extent of these.			
0 marks	**1-2 marks**	**3-4 marks**	**5-6 marks**
No evidence of relevant international comparison	Candidate's comparison: • explains a key, relevant difference or similarity between the issue in the UK/Scotland and in another country/countries • explains the extent of the difference/similarity	Candidate's analysis meets the requirements for 2 marks and in addition: • points of comparison, including the extent of the similarity or difference, are made throughout the candidate response and are supported by relevant and contemporary evidence	Candidate's evaluation meets the requirements for 4 marks and in addition: • points of comparison are integrated into and form a key part of the candidate's line of argument

Evaluation
Evaluation involves making a judgement(s) based on criteria. Candidates should make reasoned evaluative comments on factors such as evidence which supports their line of argument, and also evaluative arguments.

Evaluative comments will relate to, for example:

- validity and reliability of evidence
- the extent to which a viewpoint/argument is valid
- the extent to which a viewpoint/argument is supported by evidence
- the relative importance of factors in relation to the issue
- the impact/significance of the factors when taken together
- the relative value of alternative arguments

0 marks	1-2 marks	3-4 marks	5-6 marks	7-8 marks
No evidence of evaluation/ purely a descriptive response *or* Evaluation is not relevant to the question	Candidate makes points of evaluation which are relevant to the question: • but are not reasoned *or* • only one reasoned relevant point of evaluation is made	Candidate makes reasoned points of evaluation which: • address the relevance/ importance/ significance of factors • are used to make an overall judgement(s) on the question • relate to the candidate's line of argument	Candidate's evaluation meets the requirements for 4 marks. In addition, there is reasoned evaluation of at least one alternative factor.	Candidate's evaluation meets the requirements for 6 marks and in addition: • points of evaluation are integrated throughout the candidate's line of argument • the overall judgement includes reasons for discounting or accepting alternatives: these reasons are used to clearly support the overall conclusion

Synthesising information to structure and sustain lines of argument
Synthesis involves drawing two or more pieces of information/viewpoints/evidence together to support a structured line of argument.
A line of argument involves bringing together/linking points in a coherent manner, building towards a conclusion. The candidate's conclusion will go beyond a summary of key issues, making a relevant overall judgement which addresses the specific question or issue. Conclusions may be found throughout an extended response or within one separate concluding section.
A well-reasoned conclusion will include:

- clear evidence that a conclusion has been reached
- detailed reasons to justify the conclusion

0 marks	1-2 marks	3-4 marks	5-6 marks	7-8 marks
No evidence of any: • attempt to draw together information • line of argument	Information is drawn together to summarise the key elements or main points but there is no clear conclusion on the question *or* There is a clear conclusion but this may not follow from a clear line of argument	Pieces of information are drawn together into an overall conclusion which provides an overall judgement on the question The conclusion follows from a line of argument and is supported by detailed reasons/evidence (candidate reasoning and evidence builds to the conclusion)	Requirements for 4 marks are met and in addition: • the overall conclusion results from a sustained line of argument developed by organising, linking or sequencing ideas throughout the response • overall conclusion includes a response to at least one relevant counter-argument	Requirements for 6 marks are met and in addition: • the line of argument integrates points of analysis and evaluation, using these to support the overall judgement • the overall judgement is based on several points of analysis or evaluation

Research methods questions (Total 15 marks) (Questions 4, 9 and 14)

Analysis – marks awarded up to a maximum of 6 marks			
0 marks	**1-2 marks**	**3-4 marks**	**5-6 marks**
No evidence of analysis – purely descriptive response *or* Analysis is not at all relevant to the question	Candidate's analysis identifies aspects of the research method which are relevant to the question but: • does not identify most relevant aspects *or* • does not show relevant links Alternatively: 2 marks can be given where analysis identifies only one key aspect and: • links the aspect with the issue in the scenario • includes relevant and contemporary supporting evidence	Candidate's analysis identifies key aspects of the research method which is relevant to the question and: • identifies relevant links • includes relevant and contemporary supporting evidence	Candidate's analysis meets the requirements for 4 marks and in addition: • analytical comments on the aspects are linked to evaluative comments Overall, for full marks, analysis will show understanding of the question and its implications, by the linking of sufficient, key or most relevant aspects, with knowledge of Social Science research methods.

Evaluation (research methods) – marks awarded up to a maximum of 6 marks			
0 marks	**1-2 marks**	**3-4 marks**	**5-6 marks**
• no evidence of evaluation (purely descriptive response) *or* • evaluative points are not relevant to the question *or* • evaluative comments lack reasoning	Candidate makes points of evaluation about the suitability of the research method in question but: • supporting evidence doesn't back up the evaluation • lack of development in reasoning *or* • only one developed*, relevant point of evaluation is made which has supporting evidence *Developed points may include, for example: • evidence • reasons • background information, support or reinforcement Candidates will be awarded a maximum of one mark where the reasoning is not developed or they make only one evaluative point.	Candidate makes developed, relevant points of evaluation about the suitability of the research method in question and in addition: • addresses the potential effectiveness of the key stated research method in relation to the specified scenario • addresses ethical issues in relation to the key stated research method.	Candidate's evaluation meets the requirements for 4 marks and in addition: • evaluative comments will clearly address the stated research method(s) in relation to the specified scenario • where there is only one stated method the candidate will evaluate their own alternative method, or combination of methods, of researching the issue

Conclusion – marks awarded up to an overall maximum of 3			
0 marks	**1 mark**	**2 marks**	**3 marks**
• no evidence of concluding remarks	• concluding remarks simply summarise the key elements or main points	• the conclusion follows from a line of argument and is supported by reasons/evidence • it is clear which research method is preferred in relation to the specified scenario	The requirements for 2 marks are met and in addition: • the line of argument integrates points of analysis and evaluation, using these to support the overall judgement • reasons for preferring/ rejecting the research methods are clear

Source stimulus questions (Total 15 marks) (Questions 5, 10 and 15)

Analysis of a source – marks awarded up to a maximum of 6 marks			
0 marks	**1-2 marks**	**3-4 marks**	**5-6 marks**
No evidence of analysis – purely descriptive response *or* Analysis is not relevant to the question	Candidate's analysis identifies aspects which are relevant to the question but: • does not identify most relevant aspects *or* • does not show relevant links Alternatively: Analysis identifies only one key aspect and: • links the aspect with the trustworthiness of the source • includes supporting evidence	Candidate's analysis identifies key aspects which affect trustworthiness of the source and: • identifies relevant links • includes relevant supporting evidence	Candidate's analysis meets the requirements for 4 marks and in addition: • analytical comments on the aspects are linked to evaluative comments Overall, candidate's analysis shows understanding of the question and its implications, by the linking of sufficient, key or most relevant aspects with knowledge of Social Science research.

Evaluation of trustworthiness – marks awarded up to a maximum of 6 marks			
0 marks	**1-2 marks**	**3-4 marks**	**5-6 marks**
No evidence of evaluation (purely descriptive response) *or* Evaluative points are not relevant (do not refer to the source) *or* Evaluative comments lack reasoning	Candidate makes reasoned points of evaluation about the trustworthiness of the source but: • there is lack of development in reasoning *or* • only one developed*, relevant point of evaluation about the source is made which has supporting evidence *Developed points may include, for example: • evidence from the source • evidence from other Social Science research • reasons • background information about conducting Social Science research	Candidate makes developed* points of evaluation which: • address the strengths and weaknesses of the source • are used to support a reasoned overall judgement(s) • are supported by knowledge about conducting Social Science research	Candidate's evaluation meets the requirements for 4 marks and in addition: • judgements on strengths and weaknesses are supported by reference to relevant additional research/sources (this may include candidate's own research) • judgement will include consideration of alternative approaches which may increase the trustworthiness of the source

Conclusion – marks awarded up to an overall maximum of 3			
0 marks	**1 mark**	**2 marks**	**3 marks**
No evidence of concluding remarks	Concluding remarks simply summarise the key elements or main points	There is a clear overall judgement about the trustworthiness of the source The conclusion follows from a line of argument and is supported by reasons/evidence	Candidate's conclusion meets the requirements for 2 marks and in addition: • the line of argument integrates points of analysis and evaluation, using these to support the overall judgement expressed within the conclusion

Detailed marking instructions for each question

SECTION 1: Political issues and research methods.

Question			Max mark	Detailed marking instructions for this question
1.			**30**	*Candidates can be credited in a number of ways* ***up to a maximum of 30 marks****.* **Credit responses that make reference to:** • Majoritarian/Plurality systems generally result in a two party system (Duverger's Law). • PR systems have a tendency to result in multi-party systems. • Strong party identification amongst voters can reinforce allegiance to one or two parties. This is often based on self-interest and class. • Periods of ideological consensus in politics results in political competition being conducted in the 'centre' where most voters are located. Mainstream parties operating in this area squeeze out or absorb other parties with their broad church/catch-all approaches. • Recent elections suggest voter volatility and disillusionment with mainstream politics threatens the credibility of these theories. • Structural and constitutional arrangements play a part in determining the party system that emerges in a country. • The party system of a country and its political system are often as much to do with the intrinsic values that have developed across its history and development as much as they are to do with the electoral systems used. • In some countries the existence of what is in essence a one-party or dominant party (South Africa/Japan) undermines the credibility of the theory that electoral systems dictate the party system and suggests the political structure is more influential.

Question			Max mark	Detailed marking instructions for this question
				Credit responses to aspects of the following: **Majoritarian systems** • Majoritarian systems do not attempt to make the national vote match the number of seats allocated to parties. Consequently, they tend not to produce proportionate results which increase the chance of a 2-party system emerging. • Duverger's law (1954) suggests that a PR system will create electoral conditions under which a multi-party system will be fostered and emerge whereas a plurality system marginalises smaller parties and results in the development of a 2-party system. **First Past the Post (used in eg UK/Kenya/Ghana/ Ethiopia/ Uganda)** • In the UK a 2-party system has dominated in the post war period. All governments have comprised either the Conservative Party or the Labour Party chiefly as single-party governments with overall majorities (eg the Conservatives in 2015 achieved an overall majority of 12, Labour from 1997-2010 achieved respective majorities of 179 in 1997, 165 in 2001 and 66 in 2005), occasionally as a minority administration (Labour in February 1974) and even as part of a coalition (Conservatives with the Liberal Democrats from 2010-2015). • The combined share of the vote of the Conservatives and Labour under FPTP has been around 70-80% since the 1970s. • In recent years there has been a drop in the combined share of the vote the Conservatives and Labour have amassed. In 2005 their combined share of the vote dropped below 70%, dropped further again in 2010 to circa 65% and has stagnated at sub-70% in 2015. This suggests the 2-party system is under pressure but remains resilient. • There are over 300 registered political parties in the UK and, in terms of effective representation, ie parties who have gained seats, there were 10 parties and one independent elected in 2015. Evidence of a challenge to the 2-party theory. • The SNP securing of 56 out of Scotland's 59 MPs under FPTP is the first time the Labour Party or Conservatives have not won a majority of the seats in Scotland in the post-war period and suggests a loosening of the 2-party system in certain regions. This could be due to a range of factors; the Referendum effect, rising nationalism, rejection of Labour and the Liberal Democrats. It remains to be seen if this will be a persistent factor.

Question			Max mark	Detailed marking instructions for this question
				• In 2015 the regions of the UK were 'won' by various parties – Conservatives in England won 318 of 533 seats; SNP in Scotland see above, Labour in Wales won 25 of the 40 seats and in Ireland the DUP won 8 of 18 seats. This is suggestive that the UK is becoming more of a multi-party system. **Electoral College (USA/Pakistan)** • The Electoral college reinforces the 2-party system as voters often vote for the 'lesser of two evils', third parties cannot enter the race without being tagged as spoilers, eg Ralph Nader has been accused of this, being criticised for handing the 2000 Presidential race to the Republican's George W. Bush by taking votes from the Democrat candidate Al Gore. • Distribution of Electoral College votes on a winner-takes-all basis supports a 2-party system as smaller parties have no chance of gaining enough support to win. Even when Ross Perot gained almost 20 million votes, 19% of the popular vote, in 1992 he failed to gain any EC votes. • Since their formation the Republicans and Democrats have dominated Presidential and Congressional elections using the Electoral College system. • 18 members of the Republican Party have served as President; 16 members of the Democratic Party have served as President. • In the post-war period Congress has been controlled by either the Republicans or Democrats. The 114th Congress saw the Republicans (54 Senators) and Democrats (45 Senators) comprise the overwhelming majority of the 100 seats available with only 1 Independent, Sen. Angus King representing Maine, who caucuses with the Democrats. • In Pakistan where an EC system is used for Presidential elections, the Pakistan Muslim League-N (PML-N) and Pakistan People's Party (PPP) have dominated, however, this has been against a backdrop of military dictatorships, political repression and electoral boycotts. • General Elections for the National Assembly in Pakistan however are conducted using FPTP and PR. 272 seats are elected under FPTP with 70 more seats reserved for women and minorities and distributed in proportion to the seats contested and won by each party. This usually results in coalition governments. In 2013 the PML-N gained 129 seats and formed a coalition with Jamiat Ulema-e-Islam (F) (JUI-F), Pakistan's fifth largest party with 15 seats.

Question			Max mark	Detailed marking instructions for this question
				Second Ballot (France) • In French Presidential elections the second ballot is employed to select the head of state and by its very nature demands that a run-off election between two candidates occurs. In theory one round of elections can occur if a candidate secures a majority of the vote, however this has never occurred. • In France, the right-wing, under a range of political monikers, including the UMP (since 2015 rebranded The Republican's Party) and the left-wing Socialist Party have dominated and occupied the Presidency since the 1980s. • The second ballot can benefit smaller parties to an extent, as voters will often vote with their heart in the first ballot and their head in the second ballot. In 2002 with a crowded primary field of 16 candidates the joint-favourite Socialist candidate, Lionel Jospin, was squeezed out by the National Front candidate Jean-Marie Le Pen. Despite this surprise the mainstream candidate Jacques Chirac of the RPR won with 82% of the vote, the biggest landslide in a French Presidential election, reinforcing the fact that it favours larger, mainstream/centrist parties. **PR Systems** • PR systems usually fail to distribute seats in a way in which one party wins a majority. As a result, smaller parties can often act as 'kingmakers' and therefore represent a credible alternative to voters to consider casting their vote for. This is conducive to the emergence of a multi-party system. • The loosening of the 2-party system in the UK has coincided with electoral reform and saw the introduction of a range of mixed and proportional electoral systems across a range of elections. However, it is counter-argued that these reforms have been introduced by political elites to defend their declining positions and do not increase multi-partyism but simply consolidates a change that has already occurred (Dunleavy, 2005). **Single Transferrable Vote (Scottish Local Authority Elections)** • Since its introduction for use in Local Authority Elections in 2009 the dominance of the Labour Party in particular has gradually been eroded. • In 2012, under STV, 23 out of 32 Councils were under No Overall Control by a single party, Labour controlled 4 councils, SNP controlled 2 councils and 3 were controlled by Independents.

Question			Max mark	Detailed marking instructions for this question
				Mixed Member Systems – AMS (Scotland/Germany) • In Scotland there has arguably been a multi-party system since the introduction of AMS in 1999. The rainbow parliament of 2003 being the best example of this. • However, there has been the emergence of a two-party competition between Labour and the SNP in recent years which has seen a decline in the share of the seats amongst smaller parties. The SNP gaining a majority in 2011 with 69 out of 129 MSPs argues against conventional theory regarding the outputs of PR/hybrid systems. **List System** • The List systems used in European Parliament elections is strong evidence of the erosion of the 2-party system in the UK. • In 2014 UKIP became the first party other than the Conservative or Labour Party to top a poll since 1906 in a national election gaining over 4 million votes, 27% of the vote and 24 seats. • With its low priority amongst the electorate, European Parliament elections have always been fertile ground for smaller and opposition parties. The performance of UKIP in the 2015 General election where they gained only 1 MP is indicative that a complex pattern of party systems is emerging in the UK. **Decreasing influence of class/increasing influence of valence issues** • Social cleavages produced long-standing patterns of party support, Lipsett & Rokkan (1967), which in turn support a two-party system based along class lines. However, the assertion that 'class is the basis of British party politics; all else is embellishment and detail', Pulzer (1967), has been in decline since the 1970s. • Dealignment took hold from the 1980s (Crew et al., 1977) which is supported by the Alford Index which showed a decline in traditional working class support for Labour. • Valence issues involving voter rating of political parties on issues such as the economy, taxation, healthcare, education and welfare have coincided with a loosening of the 2-party system.

Question			Max mark	Detailed marking instructions for this question
				Single-party/Dominant party systems **South Africa** • In South Africa the A.N.C. dominates under a PR system. Despite using a form of the List System (a closed list PR system) for electing the National Assembly, which theoretically delivers a multi-party system, the A.N.C. has dominated South African elections and been in power since the assertion of multi-racial elections after the end of apartheid in 1994. In 2014 the A.N.C. won 249 of the 400 Assembly seats. It can be argued that the ANC's dominance is based on racial cleavage. **Japan** • The Liberal Democratic Party (LDP), or Jiminto Party, has dominated politics in Japan since 1955 despite the use of a hybrid system of voting based on FPTP and a version of PR. • However, the '1955 system' has been under strain with the rise and challenge of the Democratic Party of Japan (DPJ). • In 2007, the LDP suffered one of its worst ever electoral defeats, winning only 37 of 121 seats contested and losing its majority with its coalition partners the New Komeito as well as losing its status as the largest party in the House of Councillors (the upper house) for the first time since it was founded. This has occurred as a result of electoral reform, economic crisis, as well as social and attitudinal changes amongst voters. • Structural explanations suggest dominant party systems exist due to governing party competency, the electorates' rejection of the opposition's ideology, clientelism (parties rewarding their supporters with patronage) and issues with numbers of candidates fielded as well as electoral system bias.

Question			Max mark	Detailed marking instructions for this question
				Voter disillusionment with mainstream politics/party system fragmentation • Since the 1960s there has been a decline in party identification. • In the UK partisan dealignment has been occurring. Data from British Election Studies shows those identifying strongly with one party has declined from over 45% in the 1960s to below 10% by the 2000s. • In 2011, 31% of the population identified as Democrats in the USA, 29% as Republican and 38% as independents. Disillusion with the two main parties has increased giving rise to support for movements such as the Tea Party who have become a third force in US politics and infiltrated the Republican Party. **Theory & Theorists on elections, democracy and party systems who might reasonably be expected to be referred to include:** • Duverger (1954) • Butler (1969) • Giovanni Sartori (1976/1987) • Riker (1982) • Lipset (1983) • Von Beyme (1985) • Ware (1996) • Mair (1996) • Dunleavy (2005) • Curtice (2010)

Question			Max mark	Detailed marking instructions for this question
				Any other valid point that meets the criteria described in the general marking principles for this kind of question. Candidates should make reference to any relevant global comparator(s). **Possible approaches to answering the question may choose to focus on aspects of the following:** **Example of an extract that would achieve approximately half marks:** *Scotland's multi-party system is evidence that the electoral system used does influence the party system of a country. Under the Additional Member System (AMS) smaller parties have gained greater representation and power in Scotland than they do under First Past the Post in UK general elections. In 2003 the 'rainbow parliament' saw a range of political parties gain representation including the Scottish Socialist Party with 6 seats, and the Green Party who gained 7 seats. The formation of a coalition between the Labour Party and the Liberal Democrats, the fourth largest party in Scotland at the time, is further proof of a multi-party system resulting from the use of a PR system. However, the most recent Scottish Parliament election shows that Scotland might actually be shifting to a two-party model, even under a PR system such as AMS. The SNP managed to gain a majority winning 66 seats which allowed them to form a single party government, an outcome which goes against theories related to AMS.* *Germany uses a similar electoral system to that of Scotland to elect the Bundestag and to offer the 'best of both worlds' to voters, where there is a directly elected member of parliament, an MdB, as well as proportionality and representation of a wide range of parties. Since 1957 all governments in Germany have been two-party coalitions which supports the idea of AMS resulting in a multi-party system.* **[This extract contains reference to a key aspect related to the question, supporting evidence, analysis and an international comparison of a key factor.]** **Example of an extract that would be considered high quality:** *The existence of single-party dominated party systems within so called democratic, parliamentary systems disputes the assertion that electoral systems determine the party system of a country. In authoritarian and totalitarian regimes, such as China and North Korea it is to be expected that there would be a one-party state as this fits with the ideology, nature of the systems in question and self-perpetuating philosophy of the party or regime. However, in states where free, democratic elections take place consideration must be given as to why one party tends to dominate and the factors, other than the electoral system, which may be at play.*

Question			Max mark	Detailed marking instructions for this question
				The Liberal Democratic Party (LDP) has dominated politics in Japan since 1955 despite the use of a hybrid system of voting based on FPTP and a version of the D'Hondt system. It is argued that Japan has had 'democracy without competition', Scheiner (2006). There have been several arguments put forward to explain why a dominant party could emerge within a democracy such as that of Japan. The LDP have effectively strangled political opposition. The manipulation of political patronage allowed the LDP to offer favours and rewards to its supporters in a system where local LDP politicians would bring 'pork-barrel' benefits to local voters and voting districts, especially in the conservative, rural heartlands. The LDP also encountered a fragmented opposition amongst their chief political opponents on the left who clung to a bankrupted ideology of Marxist-Socialism while their wider power base shrunk. Malapportionment of voting districts in Japan, which results in urban voting districts being under-represented and rural districts over-represented, also benefitted the LDP and continued to occur despite Supreme Court rulings that it was unconstitutional. *Despite the LDP's domination, Japanese politics in keeping with the '1955 system', has been challenged. In 2007 the LDP suffered one of its worst ever electoral defeats winning only 37 of 121 seats contested and losing its majority, having formed a coalition with the New Komeito party. This broadening of Japan's party system occurred as a result of electoral reform, economic crisis, as well as social changes. The electoral system for the lower house shifted from a single, non-transferable vote (SNTV) to mixed member majoritarian (MMM) which combined FPTP and the list system, and gave other parties a better chance of representation. Japan's economic crisis, which started in the early 1990s, and became the 'lost decade' saw the LDP lose its economic credibility and the confidence of the Japanese electorate. However, the LDP has reasserted its dominance of Japanese politics, with Shinzo Abe elected President by the lower house and the LDP going on to win 294 of the 480 seats in the lower parliamentary elections in 2012.* **[This extract contains reference to several key aspects related to the question, detailed evidence, analysis and an evaluation of alternative factors.]**

Question			Max mark	Detailed marking instructions for this question
2.			**30**	*Candidates can be credited in a number of ways **up to a maximum of 30 marks**.* **Credit responses that make reference to:** • Marxist/Socialist theory. • Labour and Socialism. • Socialism's influence on UK political parties. • Scotland and Socialist values. • Social Democracy. • Democratic Socialism. • Consideration of alternative political ideologies -liberalism/ conservatism/neo-liberalism/neo-conservatism. • Political pragmatism amongst left-wing parties and emergence of third way approaches. • Influence of socialist thought on other ideologies such as Feminism/Environmentalism and emergent political parties or movements. • New orthodoxy of neo-liberalism. • The global economic crisis and the re-emergence of socialist values. **Credit responses to aspects of the following:** • Socialism's influence within mainstream UK and European political parties has diminished with the wide acceptance of neo-liberal global economic values. • Debate surrounds the extent to which the UK Labour Party is or ever has been a socialist party. • Social democracy is arguably a bigger influence within the UK Labour Party and UK political system and represents an acceptance of capitalism that socialism rejects. • Socialism's influence is arguably now most prominent within non-mainstream political parties within the UK. • Conservative, capitalist political systems have traditionally rejected socialist values. • Socialism has thrived in countries where collectivist values have flourished. • Socialist values underpin many non-mainstream political movements especially environmentalism and feminism. • Socialism and socialist values may arguably be undergoing a renaissance as a reaction to the global economic crisis and as a possible alternative creed to neo-liberalism. *Any other valid point that meets the criteria described in the general marking principles for this kind of question.* Candidates should make reference to any relevant global comparator(s).

Question			Max mark	Detailed marking instructions for this question
				Possible approaches to answering the question may choose to focus on aspects of the following: **Marxist/Socialist theory** • A central tenet of Marxist/Socialists is a positive view of human nature, seeing humans as essentially social creatures and advocating a social and economic system characterised by common ownership of the means of the production where the principle of free access and distribution of goods and services exists. "From each according to his ability, to each according to his needs" Karl Marx (1875). **The UK Labour Party and Socialism** • Labour is the mainstream UK party most often associated with socialist values. Traditionally, Labour adopted positions in line with Socialist ideology, eg clause 4, creation of a welfare state and NHS. • Labour has always been a broad church/catch-all party combining Trotskyites, democratic socialists and Christian, Social-Democrats. • These influences explain the two strands of democratic socialism and social democracy that have co-existed within the Labour Party. • The Social Democrat wing and New Labour/Blairite factions' acceptance of 'the capitalist market' has led to accusations of Labour abandoning its socialist roots. • Revising clause 4, reducing the influence of the trade unions within the Labour Party, acceptance of PFI & markets within public services and more authoritarian approach to criminal justice and civil liberties are all emblematic of the reduction in influence of socialism with the UK Labour Party. • However, Labour arguably retains some aspects of socialism's collectivist core beliefs of social justice and welfare. Government spending rose from 34% to 46% of GDP from 2001-2010 (UK Treasury, 2013). • Under Ed Miliband's Labour, several factions or hues of thought within Labour emerged ranging from Blue Labour- socially conservative with a philosophy based on 'family, faith and flag' (Dominic Sandbrook, New Statesman, 2011)- to Purple Labour ie, New Labour by another name- to Red Labour- traditionalists opposed to new Labour and believers in redistributive taxation. • The election of Jeremy Corbyn with 60% of the vote and the backing of 250,000 voters in 2015 suggest that the Labour Party has taken a significant shift to the left, an event labelled as the 'Death of New Labour' (The Telegraph, September 2015). It is argued this represents a resurgence of socialist values within UK politics with Corbyn's manifesto including plans for a national bank, public ownership of railways and the energy sector, universal childcare and abolition of student fees.

Question			Max mark	Detailed marking instructions for this question
				• However, within the Parliamentary Labour Party (PLP) there remains a significant bedrock of right-wingers. Policy discussions on issues such as trident renewal and the election of anti-Corbynites to the Shadow Cabinet suggest the 'reds' may not have it all their own way. **Socialism's influence on other UK parties** – • The SNP, after the '79 Group's' gradual control of the party, suggests influence by social democratic, collectivist values. • The SNP government's policies on free care for the elderly, free prescriptions, opposition to the 'bedroom tax', unilateral nuclear disarmament, free higher education and rejection of austerity place it firmly on the left of UK politics. • However, it can be argued that the SNP's pro-business slashing of business tax, routine use of armed response police units, use of stop and search, plans for an ID database and 'named person' law put it in line with '… New Labour in its pomp, combining the worst reflexes of authoritarian statism and market liberalism…' (New Statesman, May 2015). • The SNP's majority in 2011 and their rout of Scottish Labour in the 2015 UK general election can be argued to be evidence of the SNP's displacement of Labour as the dominant centre-left party in Scotland. • Green Party/Scottish Socialist Party/Solidarity have all campaigned on leftist manifestos and gained moderate success and representation across all UK political levels suggesting that socialist values still hold an attraction for a section of the UK electorate. **Conservatism** • Conservatism has been the dominant political philosophy in the UK in the 20th century with the party referred to as the 'natural party of government' with Tory PMs leading government for 57 years of the 20th century. • Conservative philosophy is viewed as contrary and the polar opposite to socialism with its emphasis on individualism. Guiding principles include promotion of private property and enterprise, militarism, preservation of cultural values and institutions. **Dominant orthodoxy of neo-liberalism** • Neo liberalism, based on the economic theories of Von Hayek and the Chicago School overtook the democratic social-welfare consensus that existed in the post-war period. Within the UK this was labelled 'Thatcherism', in the US 'Reagonomics' and involved free markets, 'rolling back the state', deregulation, privatisation and replacing collectivism with individualist approaches to social issues such as health, education and social security.

Question			Max mark	Detailed marking instructions for this question
				• Appropriation of 'Thatcherite' neo-liberal economic policies by New Labour (Blairism) adds to the argument that this philosophy dominates political ideology in the UK. • Cameronian conservatism's focus on austerity and deficit reduction at the expense of welfare and public spending representing a continuation of these neo-liberal policies. **Global economic crisis and the re-emergence of socialist parties in Europe** • The 2008 global banking crisis and 2009 European sovereign debt crisis and the subsequent imposition of extreme austerity measures by the IMF, World Bank and European Central Bank on Portugal, Ireland, Greece and Spain (derogatorily named the 'P.I.G.S') has seen a rejection of mainstream political parties and the rise of both left and right-wing ideologues. • In Greece this coincided with Syriza's 2015 electoral success and the appointment of Alex Tsipras as PM. Jeremy Corbyn has drawn parallels with his own election and that of Syriza's as being a rejection of austerity and a renaissance of socialist values. **International influence of socialism:** **China** • 'Socialism with Chinese characteristics' remains the professed ideology of the Communist Party of China. • However, the extent to which the Chinese system can be argued to be socialist is debateable with the use of market economies, acceptance of private property and growing economic inequality. In 2012 a survey by Peking University found the top 5% of the country's households took home 23% of the total household income while the bottom 5% earned just 0.1%, China's GINI coefficient in 2014 was 46.9, above the UN's warning level of 40. **France** • France has a long-standing association with socialism and elected a Socialist President, Francois Hollande in 2012. Hollande was elected on an anti-austerity ticket advocating policies which included the introduction of a top tax rate of 75% for those earning over 1 million euros. • However, Hollande has been forced to abandon the 75% supertax, described by a former adviser to Hollande, Emmanuel Macron, as "Cuba without the sun". **Limitations of socialism in international political systems:** **USA** • Socialism has failed to have an impact in mainstream politics the way it has within the European model due to "American exceptionalism", as De Tocqueville termed it, with its less traditional, status based society.

Question			Max mark	Detailed marking instructions for this question
				• Other factors which explain socialism's lack of impact in US politics is the relatively high levels of egalitarianism, economic wealth, social mobility, religiosity, anti-statism and multi-culturalism. • In the USA the philosophy of liberalism took root and has been the dominant ideology shaping and influencing the main political parties. • Across and within American political parties there is less difference across the mainstream political spectrum compared to that of the UK or European models. 'Liberal', 'moderate' or 'conservative' are more appropriate typologies to describe political distinctions within the USA and cut across the two main political parties. • Liberals and progressives are supportive of civil liberties, equal rights for LGBT groups and multi-culturalism, advocate government interventionism, regulation on a limited basis and a mixed economy. Whereas, Conservatives tend to be constitutional literalists, advocating tax-cuts, reduced government, laissez faire policies, the second amendment, socially conservative (opposing abortion and same-sex marriage and tend to be more religious) in other words the three 'G's – 'god, gays and guns'. • 26% of registered US voters identify as liberals (up from 23% in 2014) while 33% identify as conservatives (a drop from 38% in 2014) while 38% identified as moderates (Pew Research 2015). Reference to theorists and academics may include: • Fourier • Marx • Lassalle • Schumpeter • Proudhon • Von Hayek • Friedman • Rawls • Nozick **Example of an extract that would achieve approximately half marks:** *The Swedish political system is often considered to be heavily influenced by socialism due to its' high levels of taxation and the view that it has a universal healthcare and welfare system. However, this is only true to an extent. In 2014 the average personal income tax rate in Sweden was almost 60% which contrasts with the USA's, which is much lower than 40%. This suggests that in Sweden wealth is redistributed more than in the United States which shows socialist values have more influence there.* *Sweden, however, has a mixed rather than a collectivist economy. Healthcare, for example, is paid for through taxes and user fees.*

Question			Max mark	Detailed marking instructions for this question
				Swedes have to pay for visiting a doctor or being hospitalised as well as pay for prescriptions. Dental care is particularly expensive and an insurance model is used to pay, although there are limits placed on what can be charged. *In the education sector in Sweden there has also been a growth in the number of private schools since the 1990s and schools have even been allowed to operate for profit. This suggests that politically Sweden is more of a capitalist society than a socialist country despite what many think.* **[This extract contains reference to key aspects related to the question, supporting evidence, basic analysis and an international comparison of a key factor.]** **Example of an extract that would be considered high quality:** *The influence of socialism is felt most within the Labour Party who have traditionally been associated with the Labour movement and socialist values of nationalisation, collectivism and universal welfare provision. However, Labour has also been said to have owed more to "Methodism than to Marxism". During the Blairite years in power from 1997-2007 the social democrat New Labour/Blairite faction instigated internal party reforms and economic and welfare reforms that were more in keeping with the market orientated neo-liberalism that had been advocated by 'Thatcherism' and the Conservatives. Clause 4's symbolic rewriting saw Labour end its commitment to nationalisation of key industries and the 'means of production', a cornerstone of socialist principles. Market reforms adopted by then Chancellor, Gordon Brown, such as the granting of independence to the Bank of England and further deregulation of the City of London further supported the idea that socialism had been abandoned by the New Labour project.* *However, Labour retained core values associated with socialism's collectivist principles. Whilst in government Labour continued to support free universal access to healthcare and health spending grew year-on-year above inflation so that by 2010 it stood at £140 billion and had increased to almost 10% of GDP. This also occurred whilst enlargement of private healthcare provision was being adopted. 'Equality of opportunity' rather than 'equality for all' and 'hand-ups' not 'hand-outs' were New Labour's mantras in government and were a clear departure from orthodox socialist values. The 'third way' advocated by New Labour was never 'socialist' and could be argued to have more in common with social democratic values.*

Question			Max mark	Detailed marking instructions for this question
				Since their 2010 election defeat the Labour Party have had trouble moving on from, or beyond New Labour. 'Red Ed' Miliband's leadership saw a deliberate disassociation with the term Blairism and accusations of a return to a more left-wing position that closer scrutiny does not bear out. Within the contemporary Labour Party there are a variety of 'colours' vying for control ranging from 'Red' socialists to 'Purple' Blairite factions. After the 2015 election victory of Jeremy Corbyn it can be argued that 'Red' Labour have won out and are going 'back to the future' with leadership manifesto promises which included renationalisation of transport and key industries. However, the 'Corbynistas', as they have been dubbed, face a rear-guard action from moderates within Labour who are resisting this shift back to the left. **[This extract contains reference to several key aspects related to the question, detailed evidence, analysis leading to synthesis and evaluation.]**

Question			Max mark	Detailed marking instructions for this question
3.			**30**	*Candidates can be credited in a number of ways **up to a maximum of 30 marks**.* **Credit responses that make reference to:** • The UK's uncodified constitution. • Benefits of the UK's uncodified constitutional arrangements. • Limitations of the UK's uncodified constitutional arrangements. • Arguments in favour of UK constitutional reform. • Scotland's constitutional arrangements within the UK. • Analysis of international countries with uncodified constitutional arrangements eg New Zealand. • Analysis of international countries with codified constitutional arrangements eg USA. • Benefits of codified constitutional arrangements. • Limitations of codified constitutional arrangements. **Credit responses to aspects of the following:** • Uncodified constitutions offer flexibility and allow responsiveness to changing political situations and social developments. • The UK's constitutional arrangements have evolved over time and established a stable, democratic nation-state. • Scotland's constitutional set-up and devolution of power from the UK Parliament has been achieved effectively and within the uncodified UK constitutional set-up. • Uncodified arrangements maintain the primacy of Parliament. • Uncodified constitutions offer limited protection of rights and offer too much power to elected legislative bodies. • Uncodified arrangements may offer flexibility. • Codified constitutions allow for judicial review and oversight. • Almost all modern democracies have adopted codified constitutions; the UK and New Zealand, are arguably, the only countries who operate uncodified constitutions. • Written constitutions protect individual rights and define relationships between the state and the citizen. • Codified constitutions act as a check against legislative sovereignty and elective dictatorships. • Codified constituents are 'rigid' and prevent reforms. • Codified constitutions lead to judicial tyranny by unrepresentative, unelected judges. • Codified constitutions erode the principle of legislative sovereignty.

Question			Max mark	Detailed marking instructions for this question
				Any other valid point that meets the criteria described in the general marking principles for this kind of question. *Candidates should make reference to any relevant global comparator(s).* **Possible approaches to answering the question may choose to focus on aspects of the following:** • The UK's uncodified constitution. The British constitution is part-written and uncodified. • Parliamentary sovereignty is regarded as the defining principle within the UK. • Other core principles are rule of law, separation of the branches of government and a unitary state. • Law in the UK derives from Common Law, Statute Law and EU laws. • Common law includes royal prerogative and parliamentary sovereignty; laws can also be made by statute (Acts of Parliament) such as the Fixed-term Parliament Act (2011). Major constitutional rules are also contained in conventions (rules rather than laws) which have evolved over time and regulate the business of government such as royal assent being required for the passing of a bill in parliament into law. • Since 1972 European law developed by the European Court of Justice (ECJ) has prevailed over UK laws. Membership of the EU gave a new role and extended the powers to the courts within the UK system. Courts can rule on whether British law conflicts with legislation introduced to bring British law into line with Europe. Precedents have been established that courts can overrule Acts of Parliament. • The UK's constitutional arrangements are flexible. **Benefits of the UK's uncodified constitutional arrangements.** • Parliament works - it continues to function as an effective means of scrutinising the work of Government and Ministers through conventions which have evolved such as Question Time, debates, and select committees. • Civil liberties have a long, evolutionary history in the 'free constitution' of the UK, from Magna Carta (1215) to the Human Rights Act (1998) to the Equality Act (2010). • Rights are better safeguarded by the rule of law than in a formal declaration of rights such as a written constitution as they cannot be as easily suspended or repealed, eg in the UK the principle of habeus corpus is institutionalised.

Question			Max mark	Detailed marking instructions for this question
				• Flexibility of an uncodified constitution is evident by the constitutional reforms since 1997; including Devolution through the Scotland Act (1998), removal of all but 92 Hereditary Peers through the House of Lords Act (1999) and creation of the UK Supreme Court through the Constitutional Reform Act (2005). • The unitary nature or union of the UK is well served by an uncodified constitution as it allows sovereignty to be retained by the UK Parliament but allows power to be devolved as necessary and as demanded. **Limitations of the UK's uncodified constitutional arrangements.** • It is almost impossible to comprehend the UK's constitutional set-up, especially conventions eg Ministerial codes of behaviour. • Under the UK's constitutional arrangement, it is argued an 'elective dictatorship' has evolved. • The UK's uncodified constitution has been unable to achieve notable constitutional changes. House of Lords reform has hardly moved on in over 100 years. Reform is hard to achieve because of the self-interest of parliament in maintaining a second chamber that does not challenge its primacy. • Civil liberties under the UK constitutional arrangements are not well protected. Parliament have been too easily able to set aside civil liberties and human rights, introducing draconian anti-terror legislation in the post 9/11 era, including 28-days detention without charge, limits on the right to protest and freedom of speech, extension of state surveillance powers and civil contingency plans to deploy the army during peacetime, secret courts for terror suspects (Erol Incedal's trial 2014). • Proponents of autonomy for the regions of the UK criticise the UK's unitary constitution as it means devolved assemblies are subordinate to the UK central government who have the power to repeal or overturn their decisions. The Scottish Government have criticised the Scotland Bill (2015) and the UK government for rejecting the commitment to make the Scottish Parliament a permanent part of the UK constitution. **Arguments in favour of UK constitutional reform/a codified constitution.** • Parliamentary sovereignty is an anachronism in the democratic era, and needs replaced by a written constitution that expresses the sovereignty of the people and circumscribes the powers and duties of members of Parliament in both Houses. • A written constitution would make the different regions of the country more fully integrated within the United Kingdom.

Question			Max mark	Detailed marking instructions for this question
				• The complex asymmetrical structure of Scottish, Welsh, and Northern Irish government in the United Kingdom needs rationalisation and the coherence to set down the underlying principles and processes governing the different parts of the United Kingdom. • The UK set-up is said to fall foul of Thomas Paine's celebrated criteria of a constitution – namely, that it should be antecedent of government; that it should define the authority of government; and that where the distinction between the constitution and the government is not observed there is in effect no constitution (Michael Foley). • Opinion polls show clear popular support for a written constitution. In 2010, the periodic *State of the Nation* poll showed 73% in favour of a written constitution. • A codified constitution consists of a full authoritative set of rules written in a single text. • A codified constitution would allow judicial oversight and reduces politicisation of constitutional interpretations. • A Bill of Rights can be incorporated into written constitutions to define and safeguard civil liberties and the freedoms of individuals. Any other relevant point. **Arguments against UK constitutional reform/a codified constitution.** • The British system of government works – 'if it ain't broke, don't fix it'. It is unnecessary as the system establishes the requisite checks and balances. Government gets its way but not always, eg a Coalition government motion on authorisation of military force in Syria was defeated by 285-272 in 2013. • The normal prevailing conditions for establishing a written constitution, ie revolution or domestic catastrophe, do not exist in the UK and are therefore unnecessary. • The democratically elected Parliament has supremacy in the British system of government; a written constitution would give too much power to the UK Supreme Court who could determine what law(s) are constitutional. Power would shift from elected representatives to unelected judges. • Political agreement on the contents of a written constitution would be nearly impossible to achieve and would be destabilising. • Although the public support a codified constitution the strength of feeling for constitutional reform is low. • Entrenched codified constitutions do not readily or easily allow changes or amendments to be made. An inability to allow changes to social or political developments may lead to social breakdown, and ferment civil unrest or revolution. Any other relevant points.

Question			Max mark	Detailed marking instructions for this question
				Scotland's constitutional arrangements • Through devolved arrangements Scotland has asymmetric constitutional arrangements and operates under the sovereignty of the UK Parliament. • The Scotland Act 1998 set out the institutions, electoral procedures and devolved areas of power granted to the Scottish Parliament. The UK Supreme Court has judged the Act does not equal a 'constitution'. • Scotland may only legislate on those areas which are devolved to it. On reserved matters the Scottish Parliament has no authority to legislate. • 'Horizontal' limits are also in place on the Scottish Parliament's legislative powers meaning it cannot legislate in a manner incompatible with EU laws or the Human Rights Act. • Sewell Convention/Sewell Motions are essential to relations between the Scottish Parliament and Westminster and established the principle that Westminster would not normally legislate on devolved matters without the consent of the Scottish Parliament and was expanded to consent having to be granted for legislation on reserved matters if it would alter the powers of the Scottish Parliament or Scottish Ministers. Sewell motions have covered issues ranging from same-sex marriage to high speed rail. • Lack of a written constitution allows the UK Parliament to exert, in theory, unconstrained power to adjust governmental relationships between the UK and Scotland. • Westminster cannot veto Scottish Government/Parliament laws but can intervene in certain situations. The Attorney General can refer a bill to the UK Supreme Court plus, more politically, the Secretary of State can prohibit the presiding officer from submitting a bill for royal assent. • Cross-border public authorities are another avenue for a degree of central intrusion by the UK government in Scottish affairs. • The UK Supreme Court can rule on certain Acts of the Scottish Parliament (ASPs), Scottish civil and criminal law. In 2012 the UK Supreme Court overruled Scotland's highest appeals court in human rights cases regarding the Mental Health (Care and Treatment) (Scotland) Act 2003 deeming that the Scottish Government had been acting illegally since 2006 in failing to enact enabling legislation. • The Scotland Act 2012, based on the Calman Commission, devolved further powers on income tax, stamp duty, borrowing money up to £2.2 billion, legislative control and limited powers over drugs, driving and guns and created a Revenue Scotland, replacing HMRC for devolved taxes. • Scotland Bill 2015, provoked by 'The Vow' and based on the Smith Commission, grants additional power to the devolved Scottish assembly over elections, income tax, VAT, Sewel Conventions and £2.5 billion of benefits.

Question			Max mark	Detailed marking instructions for this question
				• English Votes for English Laws (EVEL) is the Conservative Government's answer to the 'West Lothian' question which excludes Scottish MPs from legislation affecting England or England & Wales and allows English MPs a right of veto over laws deemed solely to affect England. This has been labelled by critics as a 'charter for the end of the union'. Any other relevant points. **Analysis of international countries with codified constitutional arrangements** **USA** • The US codified constitution achieves its main aim of separating powers between the executive, legislative and judicial functions to ensure no individual or faction accumulates enough power to become tyrannical. • The US constitution was 'a judicious mixture of definiteness in principle with elasticity of details'. (Bryce) • The principle of Federalism built into a codified constitution has achieved the dual aims of protecting minority-state interests, holding the states united and preventing power being held centrally. • Rights are entrenched within the constitution and can only be changed when there is a super-majority. • Education and citizenship are encouraged by the codified constitution and citizen's awareness of their rights is improved, eg most Americans with rudimentary education are aware of their right to free speech (1st amendment), to bear arms (2nd amendment) and not to incriminate themselves in a trial or 'take the fifth' (5th amendment). • Entrenchment and strict separation of powers has regularly led to gridlock and the shutting down of government, particularly when different parties control the executive and legislative branches of government. Mann & Ornstein (2012) identify a mismatch between the US constitutional form and the present parliamentary-style polarisation that exist in US politics between ideologically extreme and partisan Republicans and less ideological Democrats. • Article 5 of the US codified constitution setting out mechanisms for change - either by a 2/3 majority in congress and 3/4 of states agreeing to proposed changes or by 2/3 of states calling a national convention (a method never used) - creates inflexibility, evidenced by more than 5000 amendments having been proposed but only 27 ever being passed. • The Federal government often ignores the will of the people but the idea of constitutional change being difficult is a myth (Ackerman, 2000).

Question			Max mark	Detailed marking instructions for this question
				• Crises such as 9/11 have shown that within the US codified set-up there is the ability to reduce civil liberties but also restore them when that crisis is over or in response to objections by US citizens and through judicial review. The Bush administration was forced to end the use of enhanced interrogation techniques, hold 'enemy combatants' outside Geneva Convention principles, rendition prisoners and prevented from attempts to use military commissions. Any other relevant points. **Russia** • Russia established a codified constitution that came into being in 1993. This established a framework for government; a Federal system, separation of powers, a bicameral legislature and directly elected Head of State. • Article 4 in the Russian constitution explicitly provides for federal government supremacy, eg Article 71 gives federal government jurisdiction over nearly fifty aspects of government including rights and liberties of citizens and the courts. • Within the Russian constitution the President wields more power than those of other heads of state allowed under other codified constitutions. This can be attributed to the historical and political traditions of Russia. • Article 83 specifies the Duma (Lower House of Parliament) must consent to the president's choice of Prime Minister, however, under Article 111, if the Duma refuses the president's nominee three times the president can dissolve the Duma and call new elections. • In 2008 the Russian Upper House gave assent to President Medvedev's proposals to an extension of Presidential terms from 4-6 years and prohibiting Presidents from serving two consecutive terms in a row although it set no limit on non-consecutive terms. This was the first major change to the Russian constitution since 1993. Vladimir Putin has been the main beneficiary of this having already served as President from 1999-2008. Any other relevant points. Reference to theories and theorists on constitutional matters may refer to: • A.V. Dicey (1885) • W. Bagheot (1863) • J.P. MacIntosh (1962) • Ackerman (1993/2000) • M. Foley (1999) • Vernon Bogdanor (2009)

Question			Max mark	Detailed marking instructions for this question
				Example of an extract that would achieve approximately half marks: *The UK and Scotland's constitutional arrangements are constantly evolving and changing. Although nationalists will only be fully satisfied by a codified constitution within an independent Scotland, it could be said that there is a constitution for Scotland, although it isn't contained in a single document and is under the control of Westminster. After the 2014 Scottish Independence referendum the leaders of the three main UK political parties issued 'The Vow' that if Scotland voted no to independence they would be given further powers. The Smith Commission reported that as part of the Scotland Bill (2015), the Bill would give Scotland the 'most powerful devolved parliament in the world'. It will have power over income tax, welfare and some benefits. However, the Scottish government has said this does not go far enough and still allows the UK government to interfere and control Scottish affairs including business tax. Scotland's place within the UK shows that an uncodified constitution can change and evolve and respond to political demands. It has also allowed the UK to stay together, although this does not please everyone.* **[This extract contains reference to a key aspect related to the question, supporting evidence, analysis and evaluation.]** **Example of an extract that would be considered high quality:** *Critics of a codified constitution argue that it can be undemocratic with the emphasis on rights rather than governance. In the USA there have been regular periods when the formal separation of power between the Executive and Legislature has led to 'gridlock' between the two branches of government. This has happened as recently as 2013 when the Republican dominated Congress refused to give budget approval in an attempt to derail the Patient Protection and Affordable Care Act (known as Obamacare) and resulted in the Federal government being shut down for 16 days. Within the UK this 'gridlock' is highly unlikely to ever occur as the uncodified arrangements and conventions clearly establish the primacy of Parliament and the distinction between the Executive and Legislative is more blurred. The government within the UK are drawn from the executive body and usually have an in-built majority which means they are unlikely to be defeated on matters of important legislation. The uncodified nature of the UK is flexible and convention rules that Parliament and hence, the Government, have primacy. This flexibility allows the British system a number of ways in which it avoids or can respond to issues of gridlock. The House of Lords (the upper chamber in the UK bicameral system), for example, can only delay government bills for one year and has no power over financial bills. The Salisbury convention has also evolved over time where the Lords shall not block any legislation that has explicitly formed part of the government's election manifesto. In extremis, the government of the day can also create enough peers to give them an in-built majority in the Lords, established by the 1911 and 1949 Parliament Acts.*

Question			Max mark	Detailed marking instructions for this question
				In 2015 the Lords was criticised for blocking the proposed tax credit reforms of the Conservative government which they argued was a financial bill. However, this had only been put forward by the government as a Statutory Instrument (SI) rather than as a Bill which forms primary legislation. The Conservative government reviewed their legislation but threatened they would cut the Lords' powers, although this would be primary legislation and could take up to two years to be introduced. Under the US constitution such changes would be almost impossible to achieve due to the necessity to gain a super-majority in Congress and then be ratified by three-quarters of US states. These issues show that the UK constitution is more responsive, can act more swiftly, and change more easily than its US comparator. **[This extract contains reference to several key aspects related to the question, detailed evidence, analysis with international comparison leading to synthesis and evaluation].**

Question			Max mark	Detailed marking instructions for this question
4.			**15**	Candidates can be credited in a number of ways ***up to a maximum of 15 marks***. **Expect reference to the following in critical evaluation of Covert Participant Observation:** **Covert Participant Observation *may be appropriate because:*** • In the case of covert observation, the researcher's status is not made known to the group. This allows the researcher to avoid the problem of the Observer/Hawthorne Effect. • Validity is increased, since the researcher is more likely to observe natural behaviour representative of a small social group. • By becoming a member of a group, the researcher can personally experience the thought processes that political decision makers go through and understand the motives and meanings of people's behaviour from the viewpoint of those involved in the behaviour being studied. This gives a researcher insight into individual and group behaviour- it may allow the researcher to formulate hypotheses that explain such behaviour. • Quality and depth of information gained is significant. This method gives real 'verstehen' which is not possible via quantitative methodologies. • Arguably the only way to gain the information on this particular topic - access to social groups who would otherwise not consent to being studied. 2013 - The Met police used undercover officers to spy on political groups who campaigned against police mistreatment and corruption. 2015 - undercover investigation involving former Foreign Ministers Jack Straw, Sir Malcolm Rifkind and a bogus Chinese company. Various Sun newspaper undercover work - eg 2015 UKIP MEP Janice Atkinson was suspended amid allegations of a plot to make fraudulent expenses claims to the EU. **Covert Participant Observation *may be less appropriate because:*** • It could be difficult to gain access and maintain cover in the group. If a researcher is too young, too old, too male or too female for the group they want to research this will cause problems of participation. The researcher's ability to blend seamlessly into a group is absolutely crucial. • The method is fraught with potential difficulty and dangers of taking part in the activity and observing simultaneously. • This method leaves the researcher unable to conduct interviews, ask questions and openly record data.

Question			Max mark	Detailed marking instructions for this question
				• The ethical disadvantages of deceit of the group and invasion of privacy, which could end in mental or physical harm. Met police – undercover officer Mark Jenner, alias 'Mark Cassidy', joined the Colin Roach Centre. Jenner, was married with children, but had a four-year relationship with one of the women he was investigating. • The method is unlikely to get consistent or comparable results on a large scale, since the data gathered is qualitative and there are variations between different small groups. • Issues of going native/becoming attached to the group. In 2011, the case against 30 environmental campaigners was thrown out of court, after PC Mark Kennedy, an undercover police officer, was accused of helping organise and pay for the protest. The Guardian reported that "Kennedy was described as so repentant that he was willing to betray his ex-employers and give evidence that would help the activists. According to their lawyer, Kennedy had apparently become convinced of their cause, and "gone native", offering to help their defence." • Time and cost considerations - less of an issue in political circles than perhaps in respect of other fields of study, eg The Sun newspaper routinely manage to carry out undercover research, without the need to infiltrate a group for a sustained period of time. The time and cost is still important and it takes longer to establish these connections than setting up a simple interview. Mark Kennedy's infiltration of protest groups lasted a period of seven years. • Most participant observation is restricted to fairly small-scale studies carried out over a long period and the group being studied is unlikely to be representative of any other social group. Not applicable to the whole population across the UK. Erving Goffman's study of a mental asylum in 1960 is not applicable to all mental institutions. • While the Hawthorne effect is not fully at play, the ability to impact upon behaviour even when covert remains. Behaviour may be changed not because of presence in the group but because of actions as part of the group. ***Alternative research methods which could be considered and evaluated:*** **Expect consideration and evaluation of one or more of the following alternative research methods:** • other forms of observation - overt, non-participant • surveys/questionnaires • unstructured/structured interviews • focus groups • official documents and reports, eg Home Office Anti-Corruption Plan Dec 2014, Ministry of Justice Bribery Act, Corruption in the police service in England and Wales: Independent Police Complaints Commission, Integrity Matters (tackling police corruption) by the Justice Inspectorate, Home Office.

Question			Max mark	Detailed marking instructions for this question
				Credit can be given for any other valid point that meets the criteria described in the general marking principles for this kind of question. **Example of an extract from a response that would achieve approximately half marks:** *Covert participant observation would be appropriate for investigating corruption undertaken by politicians or political groups in the UK, as it would allow the researcher to learn about the reasons behind the behaviour of those involved directly, by witnessing and/or taking part in it. This would generate high quality information, allowing the researcher to gain a deep understanding of the motives behind political corruption. By being involved directly as a member of, for example, a political pressure group, the researcher can personally experience the thought processes that members go through and the viewpoints of those involved in the behaviour being studied. This was a clear positive in the work done by PC Mark Kennedy. Additionally, because the investigator is covert, or undercover, the people being observed behave normally and do not change their behaviour. They are not affected by the Observer effect, where they might alter what they do because they know they are being watched. This means the information the researcher gathers is much more likely to be true and correct. As such, this could be seen as the best way to research such a topic.* **[This extract contains two points of evaluation with straightforward supporting evidence.]** **Example of an extract from a response that would be considered high quality:** *On one hand, covert participant observation could be seen as being clearly the best method for investigating the behaviour of politicians. This method allows the researcher to study a group that would otherwise be completely outwith their reach and scope. In a topic area as contentious as this, it would be difficult to gain the required access as the group are likely to be suspicious of anyone observing them overtly, especially if the reason for the observation is to expose their actions, which would have a grossly negative impact upon their position. With that said, it is clear that covert participant observation is the most appropriate method to use. Having said that, the principal positive of this method is also the very thing that warrants it less useful as a methodology. When observing covertly, the researcher is left unable to conduct interviews, ask really probing questions or openly record data. This can mean that the data gathered by such a piece of research is open to all manner of concerns in respect of validity and reliability, most notably whether the evidence is actually a true reflection of reality or not. An alternative method that would perhaps, therefore, be more appropriate would be to survey or interview previously exposed corrupt politicians about their behaviour and the reasons behind it.*

Question			Max mark	Detailed marking instructions for this question
				This would allow the researcher to produce statistical evidence of a quantitative nature, allowing them to draw conclusions about the corrupt practices on a wider basis than just one politician, which may not be representative of all. Studying one politician in just one corruption scheme may well have given a deeper understanding, or 'verstehen', of the problems, but would not necessarily produce information that was generalisable to the whole population of corrupt or non-corrupt people within political circles. Additionally, the likelihood of this actually working is debatable. In the recent case of Sir Malcolm Rifkind and Jack Straw being accused of corruption, the latter told the BBC Radio 4's The World At One programme in an interview that he hadn't done anything wrong, despite having been recorded undercover seemingly explaining how he operated "under the radar", using his influence to change EU rules on behalf of a firm which paid him £60,000 a year. Sir Malcolm meanwhile was said to have claimed that he could arrange "useful access" to every British ambassador in the world because of his status. Parliament's standards commissioner Kathryn Hudson said there had been "errors of judgement" from Sir Malcolm while Mr Straw had breached the code of conduct "by a minor misuse of parliamentary resources", but they were cleared of the 'cash for access' claims. *Additionally, it is important to be aware of the greater ethical considerations related to a method such as covert participant observation. Most covert observation carried out by newspapers in the name of investigative journalism is highly unethical and during the Leveson inquiry there were many references to journalistic "dark arts". The Sun newspaper has undertaken a number of lengthy covert observations, or sting operations, targeting high profile politicians. In these instances, the ethical considerations seem justified on account of the benefits this gave to society. However, it is important to recognise that in many instances, as with Rifkind and Straw for example, those exposed end up being exonerated of any wrong-doing, with newspapers instead being lambasted and sometimes accused of using methods of entrapment to create a story. Ethics are a crucial part of any research and need to be taken in account in carrying out any research. The British Sociological Association has strict guidelines in relation to ethics and these are far more significant in respect of methods involving observation, which tend to delve further into people's lives and viewpoints, than methods aimed at gathering statistics. In investigating political corruption, therefore, from an ethical standpoint, methods other than participant observation would be much more preferable.* **[This extract contains two points of balanced evaluation of the appropriateness of the methods with detailed analysis and synthesis of relevant exemplification.]**

Question			Max mark	Detailed marking instructions for this question
5.			**15**	*Candidates can be credited in a number of ways* ***up to a maximum of 15 marks****.* **Credit evaluation of the consequences of the following in critical evaluation of the source:** • Author is a blogger. • Comment on independence and reliability of authors. • Inclusion of website link(s) easily allow further research. • Blog posts reflect research, but also tend to show partiality and bias. • Date of publication. • Inclusion of supporting figures and empirical evidence. • Information that is excluded from the source. • Ambiguity of presented detail in infographic. • Ambiguity in relation to Klout score. • Detail re: methodology (advantages and disadvantages of this form of internet-based research - problems with the use of social media). • Lack of any real commentary on the nature or significance of the statistics. • Specific issues about the source which support or detract from its validity. *Any other valid point that meets the criteria described in the general marking principles for this kind of question.* **Possible approach to answering the question:** ***Arguments that the source is valid and/or reliable*** • Web links (within the infographic and in the methodology section) allow researchers to follow-up and verify the authenticity of the source and the researcher/author's credentials. • Source content refers to recognised issues associated with voters and the use of social media. • Data Dial has been in operation for 12 years, with many clients. • The author is one of the most influential SEO's in the UK with a 35.4K following on Twitter, suggesting his views are likely to be balanced and trustworthy to garner such continued support. • The statistics have been drawn from the individual parties' pages and cannot be disputed - they can easily be checked by the researcher. Any other valid point.

Question			Max mark	Detailed marking instructions for this question
				Arguments that the source's validity and/or reliability are questionable • Date of publication 2010 - this makes it difficult to assess whether it is trustworthy in 2017, which affects its reliability and validity. • Source has been adapted from the original report and therefore may have been selectively edited. • Source has been adapted from the original blog post and, therefore, may have been selectively edited. • The source of the infographic is a small company of bloggers. The methodology states that they are involved in a wide range of areas - this suggests a potential lack of specific expertise in this area. • Relevance of some of the statistics or the ratings assigned to them could be questioned. • The figures depict evidence on a range of areas of social media, yet the statistics in the source require clearer citation and explanation in order to evaluate the authenticity. What does the 'compete' score for BNP, for example, mean in respect of their penetration and the impact of this on performance? • There is some ambiguity over the images and figures in relation to the Klout scores in the infographic when compared to the explanation of this in the methodology, which call into question the trustworthiness of the source. • Lack of detail re: the influence of Data Dial. Who are the clients they are producing resources for and does this bias their blog posts, as they are trying to promote something specific? • Any other valid point. **Example of an extract from a response that would meet the minimum standard:** *The source states that a company called Data Dial has produced it. This could be one reason for it to be considered less trustworthy than other sources, as it is small and not a particularly well-known organisation. The methodology tells us that the company is made up of just 15 people and, while size does not necessarily equal success/ability as a company, it is generally seen to be an important factor in assessing the reputability of a company in respect of carrying out research. On top of this, the source has been adapted and extracted from a much larger blog post. The selective nature of this means they may have left out some facts or skewed the data to make it look more favourable. This makes it trustworthy to a limited extent. However, the source does seem to be trustworthy to at least a small extent. It has been produced on the basis of easily verifiable statistics, drawn directly from the social media accounts of each party, which makes it more valid than it would at first seem.* **[This extract contains two relevant points of evaluation with balanced evaluation of one factor and supporting evidence drawn from the source.]**

Question			Max mark	Detailed marking instructions for this question
				Example of an extract from a response that would be considered high quality: *Despite some misgivings, taking both validity and reliability into account this source can be considered to be trustworthy to at least a small extent. The infographic has been compiled on the basis of statistical data, widely available on the Internet, which the researcher could easily double check to confirm their veracity. The accompanying methodological information makes this point clear, when the blogger states that he has gauged how well the major UK political parties utilise social media by simply recording their stats in respect of Facebook followers, Twitter followers and tweets. This information, in the form of hard and fast numbers, cannot be argued with and can be seen to give us a true snapshot of social reality at the time the source was published. The slight flaw in this respect, however, is the dated nature of the source. It is impossible to know whether this evidence still gives a true reflection of social reality in 2017, on account of the date of the blog post being 2010. It is hard to tell if the information can be fully trusted today; however, in the context of when it was gathered it most certainly can be.* *In addition to the graphs showing raw data of followers, friends and tweets, the infographic also indicates the Klout, compete and reach scores for each party. The inclusion of this information in the graphic is extremely useful and gives the researcher wider scope to draw conclusions about the penetration of social media by various parties. However, the inclusion of this information does in fact detract from the level of trust we can place in the source. The precision of this information within the source is somewhat limited, in that the Klout scores range from 2100 for the Labour party to 5100 for the Green party. This is interesting for the researcher, in trying to assess why the seemingly much smaller Green Party has far greater Klout, and at first glance looks to be an exceptionally useful part of the source: until, of course, the methodological information is read. The blogger explains that a Klout score measures Twitter influence and it appears to be a scaling of 1-100 - we are told that Barack Obama tops the list with a Klout of 99. The fact that the infographic then depicts the parties as having Klout scores far higher than this, simply does not make sense. The ambiguity of this element of the source, would lead the researcher, therefore, to question the extent to which this source can be truly trusted.*

Question			Max mark	Detailed marking instructions for this question
				Regardless of this, the authorship of the source can be seen to improve the trustworthiness of the source to quite a large degree. Matt Sawyer is described as being "one of the most influential SEO's in the UK". This would suggest that the information he has blogged about is indeed trustworthy. Furthermore, the company he works for has twelve years of experience in blogging on a wide range of topic areas; the mere longevity of the company as a blogging entity also surely impacts positively upon the source's reliability. Finally, in this respect, is the fact that Matt has 35,400 Twitter followers, indicating that a great many people clearly do trust and respect his opinions. That said, the sheer number of followers on Twitter does not necessarily equate to sensible, trustworthy, factual information being shared. For example, Katy Perry has 74.2 million twitter followers, Justin Bieber has 69.2 million and Taylor Swift has 65.7 million. These three top the list of Twitter follower numbers, but that does not necessarily mean that we would trust them in respect of twitter or blog posts being factually correct, from reputable sources or accurate in respect of their exemplification. Thus, the seemingly positive reputation of the blogger must be questioned when assessing trustworthiness and the researcher would probably be well advised to do further researcher, via the links, about Matt Sawyer before concluding fully on this element. **[This extract contains detailed evaluation and analysis of the trustworthiness of the source with supporting evidence drawn from the source, knowledge of the methodology and appropriate context for this issue.]**

SECTION 2: Social issues, law and order and research methods.

Question			Max mark	Detailed marking instructions for this question
6.			**30**	Candidates can be credited in a number of ways ***up to a maximum of 30 marks***. **Credit responses that make reference to:** • Role and structure of the Police. • Role of Scottish and UK Courts. • Human Rights legislation. • Penal policy: rehabilitation and the prison population. • Crown Prosecution Service/Procurator Fiscal. • Probation service. • Evaluation of the role and administration of criminal justice systems within international contexts. **Credit responses to aspects of the following:** • Formation of "Police Scotland" has attracted both criticism and praise eg in terms of cost, public confidence. • Extent of discrimination by the courts. • Changes to Freedom of Information rules. • Arguments surrounding a British Bill of Rights. • Civil liberties ie CCTV and anti- terrorism. • Court procedures – introduction of technology (digital and forensic). • Discordance in Scot (double jeopardy, not proven verdict). • Impact of cuts to legal aid and plans for further savings. • Contrasting international approaches to criminal justice procedures and their impact. *Any other valid point that meets the criteria described in the general marking principles for this kind of question.*

Question			Max mark	Detailed marking instructions for this question
				Possible approaches to answering the question and examples of extracts from responses. Candidates should discuss a range of approaches, such as: **Role and structure of the Police** • Notion of consensual approach is a myth and police operate in a conflictual manner. Police discriminate against poor male, young, urban–centred individuals. Military style of policing is used selectively and generates mistrust, hostility between the police and general public (Scraton, 1995). • Styles of policing have changed towards a more confrontational military style, especially in inner cities. This can lead to people being treated differently by the Police depending on the style of policing adopted. • A police culture of internal solidarity is developed given the dangerous nature of the job. They feel distanced from the public and senior officers which further reinforces solidarity. Many are male, white, working class, therefore, share and reinforce racist values (Skolnick, 1966**).** • Formation of "Police Scotland"; one of the main drivers was to save money with savings of £1.1 billion expected by 2026. • The proportion of adults who gave local police a positive rating (said they did a good or excellent job) was 63% in 2013/14. This represents a small increase from the 2012/13 figure (61%) and is similar to the 2011/12 figure (62%). While not directly comparable, prior to this, the proportion of adults who gave the local police a positive rating increased from 47% in 2003/04 to 59% in 2010/11. • High police visibility is associated with positive ratings of the police. For adults who reported high police visibility, 71% gave the local police a positive rating. This compares with 61% of adults who reported medium police visibility and 53% of adults who reported low police visibility. • In 36 of the forces black people are being targeted more than their white fellow citizens eg in Dorset a black person was 17 times more likely to be stopped and searched than a white person, the figures showed. • Less than a quarter of the searches resulted in an arrest – with a far lower proportion in most areas – which fueled complaints that police are still too willing to employ their search powers.

Question			Max mark	Detailed marking instructions for this question
				Role of Scottish and UK Courts • A senior judge has set out plans to "streamline" the "inefficient, time consuming and ... very expensive" justice system in England and Wales. Among Lord Justice Leveson's ideas are more use of evidence from cameras worn by police, and flexible court hours. • The Government said it wanted to work with judges to improve the system. It has already announced a £160m scheme to replace courts' "outdated paper-based system" with "digital courtrooms". • Leveson made recommendations largely about technology and procedures, that don't require legislation. The practice in some courts of evidence being given remotely, both by victims and witnesses, should be expanded across the country. The use of modern IT can and should go much further. • Bill Waddington, chairman of the Criminal Law Solicitors' Association, said the report "demonstrates the disastrous impact" that criminal legal aid cuts will have on law firms if they are required to invest in new IT systems while having to take another fee cut. • Black and Asian defendants are almost 20 per cent more likely to be sent to jail than those who are white. At the same time, the average prison sentence given to Caucasian criminals by courts in England and Wales is seven months shorter than those given to Afro-Caribbean offenders. • The figures represent "institutional racism". "I'm not sure what else you can call it," he said. "The effect is right across the criminal justice system. From stop and search, to arrest, to charge and to sentencing – every aspect of the process is stacked against defendants from ethnic minority backgrounds. It is not a pretty picture" (Society of Black Lawyers, 2016). **Human Rights Legislation** • The next Conservative government's plans to abolish the Human Rights Act, and introduce a British Bill of Rights. "… will break the formal link between British courts and the European Court of Human Rights, and make our own Supreme Court the ultimate arbiter of human rights matters in the UK". • This would protect basic rights, like the right to a fair trial, and the right to life, which are an essential part of a modern democratic society but could stop terrorists and other serious foreign criminals who pose a threat to our society from using spurious human rights arguments to prevent deportation. • Problems with Article 8, the right to a private and family life would be addressed through introducing right to jury trial, and a right enshrining the freedom of the press. • Protection from the risk of torture or inhuman and degrading treatment (Article 3) was applied by Strasbourg in its ruling that UK whole life sentences without the possibility of review were unlawful.

Question			Max mark	Detailed marking instructions for this question
				Penal Policy: Rehabilitation and the Prison Population • The Government denies penal policies have generated a crisis of overcrowding in prisons in England and Wales. • Opposition parties counter such claims and maintain jails are becoming "unsafe warehouses" with increasing rates of suicide, self-harm and rioting. • However, the Government has hailed the introduction of a new scheme to enable prisons to take on temporary staff to deal with temporary population pressures. • The Government had paid private firms including G4S and Serco to provide emergency prison places - but the Government has not disclosed costs incurred. • The Chief Inspector of Prisons claims that the situation is extremely serious. He said the system was not coping, and warned that because of staff shortages, men were locked up together for 23 hours a day, causing "huge tension." • He added extra resources and/or new penal approached within the criminal justice system were needed or the prison population had to be reduced. "This is a political and policy failure - this is not the fault of staff." **Crown Prosecution Service/Procurator Fiscal** • 12 per cent of the 1.4 million crime reports sent to the Crown Office and Procurator Fiscal Service (COPFS) over the past five years were scrapped before they could be dealt with by judges or sheriffs. • The 180,000 dropped cases cost taxpayers £10 million to investigate and more than a million man hours were wasted on them. • Documents obtained under the Freedom of Information Act found that a staggering 56,000 cases had been dropped because the Crown did not have sufficient evidence. A further 42,000 cases were halted because prosecutors deemed further action disproportionate. • There's a victim at the end of every crime. When speaking to young people about crime, especially violence, they laugh because they know their chances of going to prison are slim. If we want control crime, we have to tighten up our criminal justice system (Mothers against Murder and Aggression, 2015). • The number of unprocessed criminal cases within the Crown Office has surged by 1000 since last year amid union claims Scotland's legal system is struggling with insufficient staff to handle the workload. • The Procurator Fiscal's Office had 15,000 cases backlogged, and 49% are more than one month old. In the first months to October last year, the number of cases had doubled from 7000 to 14,000.

Question			Max mark	Detailed marking instructions for this question
				Probation service • The Ministry of Justice has repeatedly denied that the service has nearly ground to a halt as a result of recent changes. • The Government has been accused of splitting the probation into two ahead of privatising 70 per cent of the service that deals with low-to-medium risk offenders, as 35 trusts become 21 community rehabilitation companies (CRCs). High-risk offenders are overseen by a new National Probation Service (NPS), a separation that has infuriated experienced senior officers. • A backlog of 75,000 unseen emails, many containing vital information about offenders, to and from probation officers built up in London alone, with similar problems in Norfolk and Suffolk. • In just one year in Scotland, almost £700 million is spent on bringing adults accused of crime to justice. This includes cost to prosecutors, the Scottish Court Service and the Scottish Legal Aid Board, should financial support to raise a defence be required. • Legal aid fees for criminal solicitors will be cut by 8.75% and the number of contracts for attending police stations and magistrates' court reduced by two-thirds, the Ministry of Justice has confirmed. **Evaluation of the role and administration of criminal justice systems within international contexts** • Diagrama, a not-for-profit organization, runs 38 responsible for virtually all of the Spanish youth custody system. Before, Spain locked up children in similar conditions to adults, and when children in custody reached the age of 18, they would automatically be transferred to adult jails. • In 1992, a law was passed requiring the juvenile justice system to operate according to international rules and standards on children's rights. The understanding was that if children were going to be jailed, they would also have to be nurtured, educated and rehabilitated. • This contrasts with Britain - 33 children under 18 in England and Wales have died in custody, 31 of whom killed themselves. In total, 291 inmates under 21 have died in detention since 1990; 264 of them took their own lives. • While in England and Wales, the age of criminal responsibility is 10, in Spain it is 14. Between 14 and 16, the maximum sentence a child can receive is four years, irrespective of the crime; between 16 and 18, it's eight years. If children are sentenced before they are 18, they serve their entire sentence in re-education centres. (In England and Wales, they would be transferred to a separate section of a young offender institution on reaching 18.) In Spain, at 18, their criminal record is cleared.

Question			Max mark	Detailed marking instructions for this question
				• South Africa's 241 correctional facilities house around 162,000 inmates — 44,000 more than their official capacity of around 118,000. About 10,000 of them are prisoners awaiting trial who have been granted bail but cannot afford their often small sureties. • By contrast, German judges narrow issues from the outset of trials. By the time they are ready to decide the case, the parties know on which disputed facts the decision will turn. Parties may decide not to proceed due to costs and to avoid the litigation risk of an adverse decision. **Example of an extract from a response that would achieve approximately half marks:** *Recent criminal justice issues suggest that some aspects of the current system are failing. The Police and the Prison Service in particular have come under criticism. Police Scotland has been criticised over its excessive use of stop and search tactics as well as the number of armed officers seen on the country's streets. The force is also being investigated over the death of Sheku Bayoh in police custody. However, police officers in England and Wales will take part in a training programme that aims to reduce racial discrimination when officers are using their stop-and-search powers. The trial is focused on reducing bias to limit the number of cases where the powers are wrongly used. More than a quarter of a million stop searches each year could be unlawful, because police fail to show reasonable grounds for suspicion in 27% of cases, according to Her Majesty's Chief Inspector of Constabulary. This supports the statement that recent criminal justice issues suggest that some aspects of the current system are failing to a significant extent are completely justified. The role of the police is having a knock on effect for other areas within the criminal Justice system. The Government is currently facing criticism that policing and sentencing polices have generated a crisis of overcrowding in UK prisons. Moreover, Opposition parties claim that jails are becoming "unsafe warehouses" with increasing rates of suicide, self-harm and rioting.* **[This extract contains some development of a key aspect related to the question, supporting evidence some origin is referenced, some limited balanced comment with a reasoned but unexplained evaluation based on the evidence presented.]**

Question			Max mark	Detailed marking instructions for this question
				Example of an extract from a response that would be considered high quality: *Among the issues raised by families and women who come into contact with the police, courts and prison is a lack of basic information to help them navigate procedures within the criminal justice system particularly in police stations or the courts. A concern of the pressure group, Justice for Women, is that police and professionals in courts do not always have the necessary skills, training or resources to adequately support vulnerable people, some of whom have difficulty communicating. Many reported that the experience of the system could be shocking, stressful and overwhelming. This is despite the launch of a "liaison and diversion" service aimed at identifying and supporting vulnerable adults and children throughout the justice system, which includes referring them to appropriate services. Liaison and diversion services cover just over half of England, and the Government is committed to rolling them out across the country. However, there are fears that renewed pressure on departmental budgets means that these proposals cannot be introduced. Devolved powers also mean that uniform quality of service cannot easily be implemented and audited across the UK.* *The Government's latest spending review is scheduled to assess whether the service will get all the funding required. With more than a fifth of people in prison estimated to have some form of learning disability and a significant proportion of the population (26% of women and 16% of men) saying they had been treated for a mental health condition in the year before being sentenced, supporting vulnerable people in the system and their families must be a priority (Prison Reform Trust, 2016). The Trust believes better mental health training for police officers and other professionals would help greatly, alongside families being consulted to make sure issues were identified at the earliest possible time.* *The NAAN report, 'There to Help', found that in some areas thousands of vulnerable people were being held in cells for hours at a time. Using police data, the charity estimated that appropriate adults, many of whom are family members, were present only in around 45,000 of the total 1.4 million detentions. Liaison and diversion services were introduced after being recommended by the landmark 2009 Bradley Review into the treatment of vulnerable children and adults in the justice system. The Relative Justice research found that where there was access to these services, families reported that relatives tended to be dealt with more sensitively and the role of family members was taken more seriously.* *While Pakistan, ostensibly, has a proactive judiciary, systemic problems within its criminal justice procedures generate even more issues of concern than those in the UK, such as a lack of knowledge and blatant flouting of existing national and international standards for human rights. These range from inadequate*

Question			Max mark	Detailed marking instructions for this question
				coordination between stakeholders in the criminal justice system and a lack of training and inhuman approaches to penal strategies. This, consequently, seriously impedes the administration of justice, especially for vulnerable groups. However, in 2016, training for law students and legal professionals discussed the situation of women prisoners in Pakistan and the extent to which standards documented in the UN Bangkok Rules are implemented and how improvements could be made. The training covered women offenders' physical and mental health needs and their rehabilitation. Other issues discussed included overcrowding and poor conditions in the prisons, the lack of non-custodial measures for first-time and petty offenders and the extent to which legislation and policy in Pakistan, such as the Pakistan Prison Rules, are implemented and reflect the UN Bangkok Rules. *Therefore, despite concerns surrounding recent criminal justice issues in the UK which suggest that many aspects of the current system are failing, criminal justice systems in other nations such as Pakistan have even more profound issues surrounding the implementation of criminal justice procedures. This can be attributed to lack of accountability by justice personnel's failure to uphold national and international laws.* **[This extract contains detailed development of a key aspect directly related to the question, extensive supporting, referenced evidence, evaluated and analysed in depth with a conclusion based on a coherent line of argument within national and global contexts.]**

Question			Max mark	Detailed marking instructions for this question
7.			**30**	Candidates can be credited in a number of ways ***up to a maximum of 30 marks***. **Credit responses that make reference to:** • Theories accounting for criminal behaviour. • Crime theories offer a wide range of explanations. • Impact of social factors. • Impact of economic contributors. • Impact of Government policies. **Credit responses to aspects of the following:** • Crime theories offer a wide range of explanations, eg Delinquent Sub Culture, Labelling, Marx and Right Realist. • Biological explanations including Warrior gene, high testosterone levels, XYY chromosome, and gender. • Psychological explanations including, introverts v extroverts, maternal deprivation, personality disorders. • Criminal behaviour is generated by social deprivation - inequalities in education, housing and area. • Relative poverty due to unemployment and income levels can lead to criminal behaviour. • Ineffective Government policies widen the wealth gap and stimulate law breaking. • Alcohol and drug dependency can fuel criminality. ***Any other valid point that meets the criteria described in the general marking principles for this kind of question***. **Possible approaches to answering the question and examples of extracts from responses.**

Question			Max mark	Detailed marking instructions for this question
				Theories accounting for criminal behaviour- • **Rational choice theory:** People generally act in their self-interest and make decisions to commit crime after weighing up the potential risks (including getting caught and punished) against the rewards. • **Social disorganisation theory:** A person's physical and social environments are primarily responsible for behavioural choices. In particular, a neighbourhood that has fraying social structures eg poor schools, vacant and vandalised buildings, high unemployment leads to higher crime rates. • **Strain theory:** Most people have similar aspirations, but they don't all have the same opportunities or abilities. When people fail to achieve society's expectations through approved means, such as hard work and delayed gratification, they may attempt to achieve success through crime. • **Delinquent Sub Culture theory:** Criminal predisposition can be homogenously profiled to distinctive characteristics, young, ethnic minority, urban-centred males. • **Social learning theory:** People develop motivation to commit crime and the skills to commit crime through the people they associate with. • **Social control theory:** Most people would commit crime if not for the controls that society places on individuals through institutions such as schools, workplaces, churches, and families. • **Labelling theory:** People in power decide what acts are crimes, and the act of labelling someone a criminal is what makes him a criminal. Once a person is labelled a criminal, society takes away their opportunities, which may ultimately lead to more criminal behaviour. A self-fulfilling prophecy. • **Marxist theory:** Political factors, namely government policies such as Capitalism, generate a natural tendency to commit crime. This is born out of unequal distribution of power and wealth. • **Left realism**: Discrimination by police and courts more inclined to prosecute upper classes generates the perception that fewer upper class people break the law. Criminality is a by-product of social and economic as well as political factors. • **Right Realist theory:** Biology, genetics, and evolution, poor diet, mental illness, bad brain chemistry, and even evolutionary rewards perpetuates aggressive criminal conduct. People are genetically pre-programmed to break the law ie crime is linked to human (genetic) nature. • **Feminist criminology:** Fewer women than men are arrested or imprisoned because the police and courts are more sympathetic to women. Rehabilitation is important for female offenders rather than to merely label them abnormal having strayed from their traditional roles as mothers and housewives. Sexism should be banished from the legal system.

Question			Max mark	Detailed marking instructions for this question
				Modernist and post-modernist critique • Impossible to identify why people offend and thus dissuade people from breaking the law. Theories accounting for criminal behaviour are rejected as they adopt definitive assumptions in assuming that causal factors can be applied to account for criminal behaviour and also when looking at applied solutions to combat crime. **Biological factors** • Warrior gene – analysis of 900 offenders in Finland found two genes associated with violent crime. (The MAOA gene and CDH13.) It is thought that 5-10% of violent crime can be attributed to these genes. • Dr James Fallon, University of California, possesses this gene but has no criminal predisposition due to not being exposed to negative experiences in childhood. • A Danish study on the link between genetics and crime suggested a biological correlation between convicted fathers and their sons. For adoptive parents and their children, it suggested there was no statistical correlation. (Mednick, Gabrielli and Hutching). **Social factors such as substance misuse, discrimination, housing, education** • Figures suggest there may be a close link between underage drinking and crime; half of all 10-17 year olds who drank once a week or more (350,000) are said to have committed a criminal offence. • There is a much wider group of prisoners whose offence is in some way drug related. 66% of women and 38% of men in prison report committing offences in order to get money to buy drugs. 48% of women prisoners said they committed their offence in order to support the drug use of someone else, compared to 22% of men in prison (Ministry of Justice, 2014). • Levels of drug use are high for offenders with the highest levels of use found amongst the most prolific offenders. 64% of prisoners reported having used drugs in the four weeks before custody. • In almost half (49%) of all violent crimes the victim believed the offender or offenders to be under the influence of alcohol. 38% of people surveyed in prison believed that their drinking was a big problem, with 70% saying that they had been drinking when they committed the offence for which they were in prison (Alcohol and Crime Commission, 2014).

Question			Max mark	Detailed marking instructions for this question
				• Nine out of ten street crimes, knife crimes and gun crimes are committed by men rather than women. Twelve per cent of London's men are black. But 54 per cent of the street crimes committed by men in London, along with 46 per cent of the knife crimes and more than half of the gun crimes, are thought by the Metropolitan Police to have been committed by black men. However, in 54 per cent of street crimes where police catch their suspect, that suspect is black. • 11% of prisoners released from custody in 2014–15 had no settled accommodation. A recent report by inspectors found that the figures are "misleading" as "they do not take into account the suitability or sustainability of accommodation" (Ofsted, 2015). • Those who lived with their family were less likely to re-offend within one year (48% compared with 61%). People reporting they would be homeless or living in temporary accommodation had a higher chance of re-offending. 66% went on to re-offend, compared with 51% of those who were not living with immediate family members (Brunton-Smith, I and Hopkins, K., 2014). • The educational background of children in custody is poor: 86% of boys and all of the girls surveyed by the Youth Justice Board said they had been excluded from school. More than a third of boys (37%) and nearly two-thirds of girls (65%) said they had not been at school since they were 14 (Kennedy, 2013). • 63% of offenders who had been expelled or permanently excluded from school were reconvicted for an offence within a year, compared with 44% of offenders who were not. • 47% of prisoners compared to 15 % of the adult population have no qualifications. Those who reported having a qualification were less likely to be reconvicted in the year after release from custody (45% compared to 60%) than those who reported having no qualifications. **Economic contributors eg employment, unemployment, poverty, income, welfare dependency** • 32% of prisoners interviewed for the Surveying Prisoner Crime Reduction study reported being in paid employment in the four weeks before custody. 13% reported never having had a job compared to 3.9% of the general working population. • Prisoners who reported having been employed at some point in the year before custody were less likely to be reconvicted in the year after release than those who weren't (40% compared with 65%). • 68% of prisoners thought that 'having a job' was important in stopping reoffending. • 48% of people in prison have a history of debt. In a survey of prison outreach services run by Citizens Advice, all respondents said that debt is one of the top five issues that can cause reoffending or poor reintegration into society.

Question			Max mark	Detailed marking instructions for this question
				• A Cabinet Office study found that 28% of women offenders' crimes were financially motivated, compared to 20% of crimes committed by men (Cabinet Office Social Exclusion Task Force, 2012). • Almost two-thirds of prisoners surveyed (64%) said they had claimed benefits during the 12 months before they went to prison. Those who reported having claimed benefits were more likely to be reconvicted (58% compared with 41%) than those who did not report having claimed benefits. **Impact of Government policies, legal highs, tackling poverty** • **Marx -** Impossible to meet public expectations and tackle want so crime is an inevitable by-product stemming from inequalities in capitalist society. "This creates a society which is predicated on unequal right to the accumulation of property and gives rise to the legal and illegal desire to accumulate property as quickly as possible" (Taylor, 1975). • **Wealth Gap** –The least affluent 30% of households in Scotland owned just 2% of all personal wealth. 2% of households owned 17% of all personal wealth. 10% of households owned 44% of all private wealth, the same percentage as for the rest of the UK. By contrast, the poorer half of Scottish households owned just 9% of all personal wealth. • **Legal Highs** – Government definitions of crime and deviance create criminality in this case, especially of the young who are statistically more likely to engage in drug taking eg when the psychoactive substance bill was drafted, by the British government. **Technology and criminality** • Increase in technological media in society has created new causes of crime. Communication can be anonymous and further encourages engagement in criminal behaviour eg Talk Talk online hacking of customer accounts in 2015. • Copycat crimes can be triggered eg The film American History X provoked 3 neo-Nazi teenagers to bludgeon a stuttering Jewish classmate to death - Donald Gonzales inspired to be like Freddy Krueger; 4 people killed and attempted to kill another two ("truetv.com", 2012). • A crime linked to Facebook is reported to police every 40 minutes. In 2014, police officers logged 12,300 alleged offences involving the vastly popular social networking site. • Identity theft is a £1,800M problem with personal information being the key to an identity, the more information you can gain about a person the more you are able to steal their identity.

Question			Max mark	Detailed marking instructions for this question
				Factors relevant on a global scale, eg definitions of criminal and deviant behaviour. • 79 countries consider homosexuality illegal, predominately across African, Middle Eastern and Islamic states. • In Singapore there is a $1000 for improper disposal and carrying large quantities of chewing gum. **Example of an extract from a response that would achieve approximately half marks:** *There are many reasons which can be used to explain why people commit crime. Political, social and biological factors have all been discussed. It is difficult to state which has most merits. Sociological and political reasons are probably most valid. Delinquent subculture theory (DST) states that people are influenced by family or peer group association to either have respect for law and order or to disregard law and order. The breakdown of moral values causes crime. The environment in which the person lives can have a positive or negative impact and so encourage or discourage criminal behaviour. Crime is due to working class male, adolescent, urban centred individuals who have not been raised by family/ influenced by friends to disrespect law and order.* *By contrast, Right realists claim that at the moment there is more opportunity than ever for people in western society to increase their social status legitimately eg in education and employment without breaking the law. There is no excuse for people breaking the law, and, therefore, no sympathy should be shown. Crime can be reduced by dealing swiftly and severely with offenders. Members of the community as well as the police should be morally educating their children by working together in the community against crime and disorder eg using neighbourhood watch schemes and by protecting their own property with better domestic security devices and systems.* **[This extract contains development of a key aspect related to the question, supporting evidence, balanced consideration and a reasoned judgement based on the evidence presented.]**

Question			Max mark	Detailed marking instructions for this question
				Example of an extract from a response that would be considered high quality: *Perhaps criminology can't completely deconstruct criminal predispositions but it is possible to deduce that varying causal factors can be identified though perhaps not sequentially in order of significance. Sociological, psychological and biological schools of thought all have some validity though sociological factors hold most credence. Poverty, wrote Aristotle, "is the parent of crime." Certainly, poverty and crime are associated and the idea that a lack of income might drive someone to misdeeds sounds plausible. As Neo Marxist advocates concur "Capitalism creates a society which is predicated on unequal right to the accumulation of property and gives rise to the legal and illegal desire to accumulate property as quickly as possible" (Taylor, 1975). However, this can be tempered by that fact that discrimination may be exercised by the judicial system.* *Sociological influences conforming to Delinquent Sub culture rhetoric also exhort that people are influenced by environmental factors such as family or peer group association to either have respect for law and order or to disregard law and order. The breakdown of moral values and morality causes crime. The environment in which the person lives can have a positive or negative impact and so encourage or discourage criminal behaviour. Crime is due to working class male, adolescent, urban-centred individuals who have not been conditioned by social factors to disrespect law and order (Cohen, Cloward and Ohlin 1960).* *According to an analysis of school exclusions by the Department for Schools, Children and Families, 2,000 pupils were permanently excluded and 40,000 temporarily excluded for drug and alcohol-related incidents during the past four years. Moreover, half of 10 to 17-year-olds reported having an alcoholic drink at least once in the previous 12 months. Almost half of those who had drunk alcohol in the past year obtained it from their parents according to the ONS. Research also suggests that underage drinkers are turning to new ways to obtain alcohol. In 2014, a government survey found that 49 % of children aged 16 and 17 who drank alcohol got it from bars, with 39% getting friends to buy it for them. But by 2013, 45% said they obtained alcohol from friends who had bought it for them, while a much lower proportion bought it themselves in bars.* *According to a recent article in the Economist, nearly half of 10 to 17-year-olds who drank alcohol every week confessed to committing a crime, although parliamentary statisticians say it is not clear whether this implies a clear link between drinking and offending.*

Question			Max mark	Detailed marking instructions for this question
				Global research, however, casts doubt on the chain of causation — at least as far as violent crime and the misuse of drugs are concerned. Swedish Government research of half a million children showed that teenagers who had grown up in families whose earnings were among the bottom fifth were seven times more likely to be convicted of violent crimes, and twice as likely to be convicted of drug offences, as those whose family incomes were in the top fifth. Children in families who started poor and got richer were just as likely to misbehave when they were teenagers as their elder siblings had been. Hence, it is difficult to easily explain criminal behaviour because such vast arrays of influences exist. **[This extract contains development of a key aspect related to the question, detailed supporting evidence whose origin is well referenced, synthesis and a conclusion based on a sustained line of argument].**

Question			Max mark	Detailed marking instructions for this question
8.			**30**	Candidates can be credited in a number of ways ***up to a maximum of 30 marks***. **Credit responses that make reference to:** • Different types of penal strategies to alleviate reoffending. • Relative effectiveness of each penal system. • Factors impacting on reoffending – education, employment, housing, links with external agencies to facilitate reintegration and resettlement. • Reasons as to why non-custodial penal approaches fail to address reoffending – drug misuse, violence, overcrowding. • Lower reoffending rates for non-custodial penal systems. • High rate of recidivism in prison in Scotland and wider UK. • Penal strategies in other countries and their relative impact on reoffending. **Credit responses to aspects of the following:** • Range of penal systems, custodial, community-based and capital punishment exist in Scotland, wider UK and internationally. • Non-custodial penal systems tend to be more effective than prison. • Offenders are more likely to reoffend if incarcerated. • Socio-economic conditions and political ideologies can lead to reoffending both in prison and in wider society. • Reoffending has an emotional, social and economic impact on individuals, communities and government. • Community-based penal strategies have lower financial costs, social implications (eg unemployment and homelessness) relative to incarceration. • Prisoners (especially short – term inmates) are more likely to reoffend due to lack of provision and effectiveness of rehabilitative and resettlement strategies. • Scandinavian nations have smaller prions with higher staff to prisoner ratios. By contrast, America relies heavily upon the private sector which can be profit driven. Candidates should make reference to relevant global comparator(s).

Question			Max mark	Detailed marking instructions for this question
				Possible approaches to answering the question and examples of extracts from responses: **Different types of penal strategies to alleviate reoffending** • Drug Treatment Testing Orders (DTTOs). • Community Payback Orders (CPOs), Anti-Social Behaviour Orders (ASBOs), Criminal Behaviour Orders (CBOs), Crime Prevention Injunction (CPIs). • Restorative Justice. • Chemical castration. • Capital punishment. • Prison. • Links with external agencies from health care and social work. **Relative effectiveness of each penal system** • Over three-quarters of community payback sentences were successfully completed. However, the number of people starting community orders has fallen by 8% in the last year (Ministry of Justice, 2015). • 85% of victims surveyed as part of a government funded £7m seven-year research programme were either 'very' or 'quite' satisfied with their restorative conference (JRC, 2015). • 27% fewer crimes were committed by offenders who had experienced restorative conferencing, compared with those offenders who did not (Restorative Justice Council, 2013). • Restorative justice approaches are cost-effective. As a result of reductions in the frequency of offending Restorative Justice Council projects saved nine times what they cost to deliver. • Private prisons have held a higher percentage of their prisoners in overcrowded accommodation than public sector prisons every year for the past 16 years. • 35% of all Community Service Orders are breached; 11% of offenders received no punishment. However, only 42% of those on a CSO reoffended; lower than prison in which 2/3 re-offend. • Community sentences outperform prison sentences for 18 - to 24-year-olds by 13% in terms of reducing reoffending. Even when offenders of all ages are closely matched in terms of criminal history and offence type, the performance gap remains 8%. • ASBOs have a high incidence of recidivism despite the fact that breaching an ASBO can lead to 3 months imprisonment; only 1 in 18 people were sent to prison. ASBOs are viewed by criminals as "badges of honour". • 48% of people who completed a Drug Treatment Testing Order were not reconvicted of a crime within 2 years.

Question			Max mark	Detailed marking instructions for this question
				Factors impacting on reoffending – education, employment, housing, links with external agencies to facilitate reintegration and resettlement • St Giles Trust offers training and a recognised qualification to prisoners who deliver housing advice in a number of prisons. 246 people started to train as peer advisors, and 1,302 people were supported on release from prisons in 2014. • The Toe by Toe reading plan run by the Shannon Trust enables prisoners to act as peer mentors to support other prisoners who are learning to read. 85% of learners surveyed felt their reading skills were improving. • The offender training and employment programme work with people coming to the end of their sentences and provides training and a job on release for those selected. Over 2,000 prisoners have completed the scheme which has a reoffending rate of just 6% (National Grid, 2015). • Diverted prescription medication is reported in the majority of prisons. This can result in problems such as drug debts, bullying, unknown interactions with other prescribed drugs and the risk of overdose (HM Chief Inspector of Prisons, 2014). • HM Inspectorate of Prisons has cautioned that "the increased availability in prisons of new psychoactive substances, often known as legal highs, was a source of debt and associated bullying and a threat to health". • Purposeful activity in adult male prisons has plummeted in the last few years. In nearly half of prisons results were judged to be not sufficiently good or poor by inspectors. • Over half of prisons were judged as requiring improvement or inadequate for learning and skills (Ofsted, 2015). • 11% of prisoners released from custody in 2013–14 had no settled accommodation. A recent report by inspectors found that the figures are "misleading" as "they do not take into account the suitability or sustainability of the accommodation" (Criminal Justice Joint Inspection, 2014). • In 2013–14, only a quarter of prisoners entered employment on release from prison. Outcomes for women are significantly worse than for men (Prison Reform Trust, 2015). • Just 12% of people leaving prison and referred to the Work Programme have found a job which they have held for six months or more. Of these, nearly one in five has subsequently gone back to Jobcentre Plus (Department for Work and Pensions Tabulation Tool, 2015). • High street chain store 'Timpson' actively recruit ex-offenders to work for them. It has set up a full time training facility at HMP Liverpool and HMP Wandsworth in London, and the women's prison HMP New Hall. A Prison Excellence Centre also runs at HMP Forest Bank in Salford. Timpson's colleagues train people in a prison workshop environment.

Question			Max mark	Detailed marking instructions for this question
				• The Samaritans' Listener Scheme is active in almost every prison across the UK. There were around 1,600 Listeners in place. Listeners help prisoners to talk about their worries and try to find a positive way forward. Listeners were contacted 75,000 times during 2013 (Samaritans Annual Report, 2013/14). **Reasons as to why penal approaches fail to address reoffending – drug misuse, violence, overcrowding** • In 2014 there were 243 deaths in custody, the highest number on record. Over a third were self-inflicted. • In the last year serious assaults in prison have risen by over a third. • There is now fewer staff looking after more prisoners. The number of staff employed in the public prison estate has fallen by 29% in the last four years — 12,980 fewer staff (Ministry of Justice, 2015). • The prison system as a whole has been overcrowded in every year since 1994. Overcrowding affects whether activities, staff and other resources are available to reduce the risk of reoffending. At the end of March 2015, 70 of the 117 prisons in England and Wales were overcrowded. • People who reported being homeless before being convicted are more likely to be reconvicted than those who didn't. • Reoffending rates are lower for people who reported being in employment the year before being convicted. 40% of people who had previously had a job reoffended within a year, compared with 65% of those who hadn't. • Poly-drug users have the highest reoffending rates of all people. Seven in ten people were reconvicted compared with just under half of those who used class B and/or C drugs in the four weeks before conviction. • Prison visits help to reduce the risk of reoffending. Reoffending is 39% higher for people who did not receive visits whilst in prison compared to those who did (May, C. et al., 2008). • HM Chief Inspector of Prisons found that overcrowding remains a significant barrier to ensuring that people have access to the necessary activities, staff and that other resources are available to keep them purposefully occupied and reduce the likelihood they will reoffend. "Resources are now stretched very thinly ... there is a pretty clear choice for politicians and policy makers— reduce prison populations or increase prison budgets" (HM Chief Inspector of Prisons, 2014).

Question			Max mark	Detailed marking instructions for this question
				Lower reoffending rates for non-custodial penal systems • Short prison sentences are less effective than community sentences at reducing reoffending. People serving prison sentences of less than 12 months had a reoffending rate seven percentage points higher than similar offenders serving a community sentence—they also committed more crimes. • Scottish government has a presumption against the use of short prison sentences less than 3 months - this is currently being reviewed and may increase to 6. Finland and Belgium have got rid of sentences less than 8 months and 1 year respectively. • Restorative justice approaches are cost-effective. As a result of reductions in the frequency of offending Restorative Justice Council projects saved nine times what they cost to deliver. • 27% fewer crimes were committed by offenders who had experienced restorative conferencing, compared with those offenders who did not. • An evaluation of three Transition to Adulthood pilot projects working with young adult offenders in the community and prior to release from prison found that, over six months, only 9% were reconvicted of a new offence (all non-violent); 9% breached the terms of their community order or license; numbers in employment trebled; and numbers classified as not in education, employment and training halved (Catch 22, 2013). • If alternatives to prison were to achieve an additional reduction of just 6% in reoffending by women, the state would recoup the investment required to achieve this in just one year (New Economics Foundation, 2008). • A record number of paedophiles were referred for chemical castration; the number more than doubled between to 25 in the period August 2014 – 2015. Convicted sex offenders volunteered to undergo chemical castration to help dissuade them from reoffending. The treatment was piloted at HMP Whatton, Nottingham. The programme has now been rolled out nationwide.

Question			Max mark	Detailed marking instructions for this question
				High rate of recidivism in prison in Scotland and wider UK • On 15 May 2015, the prison population in England and Wales was 84,372. Between 1993 and 2014 the prison population in England and Wales increased by more than 40,000 people, a 91% rise. • Prison has a poor record for reducing reoffending - 45% of adults are reconvicted within one year of release. For those serving sentences of less than 12 months this increases to 58%. Over two-thirds (68%) of under 18 year olds are reconvicted within a year of release. • Reoffending by all recent ex-prisoners costs the economy between £9.5 and £13 billion a year (National Audit Office, 2010). • Short prison sentences are less effective than community sentences at reducing reoffending. People serving prison sentences of less than 12 months had a reoffending rate seven percentage points higher than similar offenders serving a community sentence—they also committed more crimes. • Prisons are getting bigger. 43% of prisoners are now held in prisons of 1,000 places or more. **Penal strategies in other countries and their relative impact on reoffending** • The United States has about 5% of the world's population yet it accounts for about 25% of the world's prisoners. Despite a steady decline in the crime rate over the past two decades, the United States incarcerates more of its citizens than any other country - 716 people per every 100,000. This translates to about one in every 100 American adults being in prison (International Centre for Prison Studies, 2015). • Compared to the USA, the next closely ranked English-speaking, industrialised country is the United Kingdom (England and Wales), at 102 in the ICPS ranking of 221 countries. As a proportion of the population, the United States has 15 times as many prisoners as Iceland, 14 times as many as Japan and 10 times as many as Norway. • This can be attributed to harsher mandatory sentences, the decades-long war on drugs, high violent crime rates, a politicised criminal justice system, and lack of a social safety net. Recidivism rates also have a significant impact on incarceration numbers. Over 50% of prisoners in the United States will be back in jail within three years of their release. • International comparisons are complex as the recidivism rates in other countries do not have a significant impact on their prison population rates. Americans are imprisoned for crimes that may not lead to prison sentences in other countries such as passing bad cheques, minor drug offences, and other non-violent crimes (Centre on Sentencing and Corrections, 2015).

Question			Max mark	Detailed marking instructions for this question
				• Prisoners in the United States are often incarcerated for a lot longer than in other countries. For instance, burglars in the United States serve an average of 16 months in prison compared with 5 months in Canada and 7 months in England (U.S. Department of Education, 2015). • Different approaches to sentencing and incarceration used in Germany and the Netherlands mean that incarceration is used less frequently and for shorter periods of time. Sanctions such as fines, probation and community-service are used as alternatives to incarceration when possible. Conditions and practices in the correctional facilities are resemble life in the community and, hence, reducing reoffending (Vera Institute for Justice, 2015). • Scandinavian countries are often considered models of good practice, particularly Norway which, at 20%, has one of the lowest recidivism rates in the world. Prisoners are not left to their own devices upon release, either. The government guarantees released prisoners have housing, employment, education, as well as health care and addiction treatment, if needed (Ploeg, 2014). • Countries in which wealth is more evenly distributed have lower rates of incarceration and recidivism. Sweden, Denmark, Norway, and Finland are among the ten countries with the smallest gap between rich and poor. In these countries, citizens pay higher taxes and receive more social services. John Pratt, a professor of criminology and expert on Scandinavian prisons, believes that strong welfare systems reduce poverty and inequality-key drivers of criminality (CIA World Factbook, 2015). • Emphasis on imprisonment has been replaced by alternative measures: suspensions, probation, community service, and a system of day-fines. In the past decade, incarceration of juveniles decreased more than 50 per cent — from 9,500 to 4,500 cases; during the same period, adult imprisonment dropped from 39,000 to 33,000 (Justice Centre, University of Alaska Anchorage, 2014).

Question			Max mark	Detailed marking instructions for this question
				Example of an extract from a response that would achieve approximately half marks: *Different types of punishment exist. Each has strengths and weaknesses. Overall non-custodial punishments such as Anti-Social Behaviour Orders (ASBO), Electronic Tagging (RLO) and Drug Treatment Testing Orders (DTTOs) work better than prison in terms or reoffending. If alternatives to prison were used the Government would get back the investment needed to issue non-custodial sentences in just one year. Therefore, this suggests non-custodial penal systems can be more effective than prison in terms of tackling reoffending. This may be due to the fact that non-custodial punishments mean that offenders are less likely to associate with hardened criminals who may encourage them to reoffend. Moreover, only 4% of low risk offenders who have been electronically tagged have reoffended since 2009 compared to 67% of prisoners. However, reoffending rates may be low due to the fact that usually low risk offenders are tagged and are less likely to reoffend. 48% of those who completed DTTOs were not reconvicted of a crime within 2 years. However, completion rates for DTTO's are low. Pilot surveys in England found that only 30% successfully completed their order. This is despite the fact that breaching an order can lead to a £1000 fine. More recently, there has been a 14% drop in the number of DTTO's being issued which suggests they have been unsuccessful.* **[This extract contains development of a key aspect related to the question, supporting evidence, balanced consideration and a reasoned judgement based on the evidence presented.]** **Example of an extract from a response that would be considered high quality:** *Despite the plethora of penal approaches used both nationally and internationally, it cannot be conclusively deduced that all penal strategies have had no significant impact upon recidivism. Prison is still the preferred penal approach despite its relatively poor record for reducing reoffending - 46% of adults are reconvicted within one year of release. For those serving sentences of less than 12 months this increases to 58%. Over two-thirds (67%) of under 18 year olds are reconvicted within a year of release (Ministry of Justice, 2015). Reoffending by all recent ex-prisoners in 2013 -2014 cost the economy between £9.5 and £13 billion according to the National Audit Office. This is despite the fact that, there is no consistent correlation between prison numbers and levels of crime. Court Orders (Community Orders and Suspended Sentence Orders) are more effective (by nearly 7%) at reducing one-year proven reoffending rates than custodial sentences of less than 12 months for similar offenders. Moreover, if alternatives to prison were to achieve an additional reduction of just 6% in reoffending by women, the state would recoup the investment required to achieve this in just one year. Reoffending may be linked to inadequate resettlement and reintegration provision.*

Question			Max mark	Detailed marking instructions for this question
				The amount of discharge grant has remained fixed at £46 since 1997. Prisoners who reported being homeless before custody were more likely to be reconvicted upon release than prisoners who didn't report being homeless (79% compared to 47% in the first year and 84% compared to 60% in the second year after release). Prisoners who reported having been employed at some point in the year before custody were less likely to be reconvicted in the year after release than those who were unemployed (40% compared with 65%). Moreover, 68% of prisoners thought that 'having a job' was important in stopping reoffending. (Ministry of Justice, 2015). Overcrowding remains a significant barrier to ensuring that people have access to the necessary activities, staff and that other resources are available to keep them purposefully occupied and reduce the likelihood they will reoffend. "Resources are now stretched very thinly [...] there is a pretty clear choice for politicians and policy makers - reduce prison populations or increase prison budgets"(HM Chief Inspector of Prisons, 2014) Court Orders (Community Orders and Suspended Sentence Orders) are more effective (by nearly 7%) at reducing one-year reoffending rates than custodial sentences of less than 12 months for similar offenders. An evaluation of three Transition to Adulthood pilot projects working with young adult offenders in the community and prior to release from prison found that, over six months, only 9% were reconvicted of a new offence (all non-violent); 9% breached the terms of their community order or licence; numbers in employment trebled; and numbers classified as not in education, employment and training halved, a clear indication of the effectiveness of such sentences. *Western Australia also has high recidivism rates. On average over the past decade, 40 to 45 per cent of people have returned to prison within two years of being released. The figures are worse for some groups, especially younger people and Aboriginal people. The three factors most strongly linked to recidivism are age, prior prison admissions, and problematic substance use. Over half of sentenced prisoners released were identified as having highly problematic substance use. Males, Aboriginal prisoners, and prisoners with low educational attainment were more likely to reoffend. All these findings correspond with national and some international research eg in the UK and USA. However, New Zealand is having some success respect of recidivism. It has set clear targets for reducing reoffending and is implementing initiatives which are both prison and community-based. They include increasing participation in treatment programmes, education and employment. Importantly, the New Zealand plan recognises at its core the role of families, non-government organisations and private sector service providers as well as the public sector.*

Question			Max mark	Detailed marking instructions for this question
				Two years into the five-year plan, New Zealand Corrections have reduced the recidivism rate by 11 per cent. Western Australia could also reduce recidivism, but this will not occur without effective strategic planning, innovation, efficiency and community engagement tailored to meet the needs of all inmates particularly to those groups most at risk of reoffending. **[This extract contains development of a key aspect related to the question, detailed supporting evidence whose origin is well referenced, synthesis and a conclusion based on a sustained line of argument.]**

Question			Max mark	Detailed marking instructions for this question
9.			**15**	*Candidates can be credited in a number of ways* ***up to a maximum of 15 marks****.* **Expect reference to the following in critical evaluation of Covert Participant Observation:** **Covert Participant Observation** ***may be appropriate because:*** • In the case of covert observation, the researcher's status is not made known to the group. This allows the researcher to avoid the problem of the Observer/ Hawthorne Effect. • Validity is increased, since the researcher is more likely to observe natural behaviour representative of a small social group. • By becoming a member of a group, the researcher can personally experience the thought processes that gang members go through and understand the motives and meanings of people's behaviour from the viewpoint of those involved in the behaviour being studied. This gives a researcher insight into individual and group behaviour - it may allow a researcher to formulate hypotheses that explain such behaviour. • Quality and depth of information gained is significant. This method gives real 'verstehen' which is not possible via quantitative methodologies. • Arguably the only way to gain valid information on this particular topic- access to social groups who would otherwise not consent to being studied. Laud Humphries' study of male homosexuals in America ("Tea Room Trade") or Jason Ditton's research (1975) into "fiddling and pilfering" in a bakery. **Covert Participant Observation** ***may be less appropriate because:*** • It could be difficult to gain access and maintain cover in the group. If a researcher is too young, too old, too male or too female for the group they want to research this will cause problems of participation. The researcher's ability to blend seamlessly into a group is absolutely crucial. Howard Parker ("A View from the Boys") found himself engaging in criminal activity while in the gang - such involvement was necessary to maintain the trust, respect and friendship of the people he was researching. • This method is fraught with potential difficulty and dangers of taking part in the activity and observing simultaneously. James Patrick's *A Glasgow gang observed*- Patrick did not note his observations until he had left the gang, for his own safety. Donal MacIntyre, has been attacked and forced to move home numerous times following his undercover research for the documentary film "A Very British Gangster".

Question			Max mark	Detailed marking instructions for this question
				• This method leaves the researcher unable to conduct interviews, ask questions and openly record data. • The ethical disadvantages of deceit of the group and invasion of privacy, which could end in mental or physical harm. • This method is unlikely to gain consistent or comparable results on a large scale, since the data gathered is qualitative and there are variations between different small groups. • Issues of going native/becoming attached to the group. Jay Dobyns, who penetrated The Hells Angels, started to feel like a part of the gang, making it very hard to leave "the boys" behind at the end of the research. • Time and cost considerations - Sudhir Venkatesh spent around 7 years in his (albeit) overt study, Gang Leader for a Day (2009). • Most participant observation is restricted to fairly small-scale studies carried out over a long period. The group being studied is unlikely to be representative of any other social group. And the findings are not generalisable to the whole population/all gangs across the UK, eg Erving Goffman's study of a mental asylum in 1960 is not applicable to all mental institutions. • While the Hawthorne effect is not fully at play, the ability to impact upon behaviour even when covert remains. Howard Parker discovered, his involvement with a juvenile gang changed their behaviour not because of his presence in the group but because of his actions as part of the group. Parker frequently tried to stop gang members from stealing cars and he also provided legal advice to gang members charged with theft. ***Alternative research methods which could be considered and evaluated:*** **Expect consideration and evaluation of one or more of the following alternative research methods:** • other forms of observation - overt, non-participant • surveys/questionnaires • unstructured/structured interviews • focus groups • official documents and reports, eg The Crime Survey of England and Wales (formerly called the British Crime Survey (BCS), Scottish Crime and Justice Survey (SCJS), Home Office Report on Knife, Gun and Gang Crime, Gang Membership and Knife Carrying: Findings from Edinburgh Study of Youth Transitions and Crime (ESYTC). *Credit can be given for any other valid point that meets the criteria described in the general marking principles for this kind of question.*

Question			Max mark	Detailed marking instructions for this question
				Example of an extract from a response that would achieve approximately half marks: *Covert participant observation would be appropriate investigating crimes undertaken by gangs in the UK, as it would allow the researcher to learn about the behaviour of those involved in this behaviour directly, by witnessing and/or taking part in it. This would generate high quality information, allowing the researcher to gain a deep understanding of the motives behind gang behaviour. By being involved as an ordinary member of a group, the researcher can personally experience the thought processes that gang members go through and the viewpoint of those involved in the behaviour being studied. This was a clear positive in the work done by James Patrick, A Glasgow Gang Observed. Additionally, because the investigator is covert, or undercover, the people being observed behave normally and do not change their behaviour. They are not affected by the Observer effect, where they might alter what they do because they know they are being watched. This means the information the researcher gathers is much more likely to be true and correct. As such, this could be seen as the best way to research such a topic.* **[This extract contains two points of evaluation with straightforward supporting evidence.]** **Example of an extract from a response that would be considered high quality:** *On one hand, covert participant observation could be seen as being clearly the best method for investigating the behaviour of gangs. This method allows the researcher to study a group that would otherwise be completely out with their reach and scope. In a topic area as contentious as this, it would be difficult to gain the required access as the group are likely to be suspicious of anyone observing them overtly, of authority generally, and are likely to be engaged in illegal activity that they do not want exposed. With that said, it is clear that covert participant observation is the most appropriate method to use. Having said that, the principal positive of this method is also the very thing that warrants it less useful as a methodology. When observing covertly, the researcher is left unable to conduct interviews, ask really probing questions or openly record data. This can mean that the data gathered by such a piece of research is open to all manner of concerns in respect of validity and reliability, most notably whether the evidence is actually a true reflection of reality or not. An alternative method that would perhaps, therefore, be more appropriate would be to survey gang members about their behaviour and the reasons behind it. This would allow the researcher to produce statistical evidence of a quantitative nature, allowing them to draw conclusions about gangs on a wider basis than just one gang, which may not be representative of all gangs.*

Question			Max mark	Detailed marking instructions for this question
				A 2008 Dispatches documentary, Why Kids Kill, carried out research on gangs in both London and Glasgow asking young people from a variety of gangs across both cities about their involvement, what would stop them offending and what their experiences were of violence. This allowed the Dispatches' researchers to compare their findings with national statistics and official reports to confirm the picture was in fact correct. Studying one gang in just one of these places may well have given a deeper understanding, or 'verstehen', of the problems, but would not necessarily produce information that was generalisable to the whole population. *Additionally, it is important to be aware of the greater ethical considerations related to a method such as covert participant observation. Donal MacIntyre's undercover research on the Chelsea Headhunter gang in 1999 involved all manner of ethical issues, including deception, lack of informed consent and related issues of harm to participants. MacIntyre's exposé of the gang involved him lying to them, by posing as a drug-dealing Ulster loyalist, in order to infiltrate the gang. Five of the gang ended up in prison following the process. In this instance, the ethical considerations seem justified on account of the benefits this gave to MacIntyre in understanding the impact of crime on society. However, this crime also impacted negatively on MacIntyre who has since had death and kidnapping threats, been assaulted, had his car trashed and has had to move house many times. Ethics are a crucial part of any research and need to be taken in account in carrying out any research. The British Sociological Association has strict guidelines in relation to ethics and these are far more significant in respect of methods involving observation, which tend to delve further into people's lives and viewpoints, than methods aimed at gathering statistics. In investigating the impact of crime, therefore, from an ethical standpoint, methods other than participant observation would be much more preferable.* **[This extract contains two points of balanced evaluation of the appropriateness of the method with detailed analysis and synthesis of relevant exemplification of an alternative and addresses an ethical issue.]**

Question			Max mark	Detailed marking instructions for this question
10.			**15**	*Candidates can be credited in a number of ways* ***up to a maximum of 15 marks****.* **Credit evaluation of the consequences of the following in critical evaluation of the source:** • Author is the Home Office. • Comment on independence and reliability of authors. • Inclusion of website link easily allows further research. • Home Office reports are usually impartial and balanced. • Date of publication. • Inclusion of supporting figures and empirical evidence. • Information that is excluded from the source. • Ambiguity of presented detail in infographic. • Ambiguity in relation to dates - 2012 compared to 2014 and 2013 compared to 2014. • Detail re: methodology (advantages and disadvantages of a telephone survey) and sample size, frame, weighting. • Specific issues about the source which support or detract from its validity. *Any other valid point that meets the criteria described in the general marking principles for this kind of question.* **Possible approach to answering the question:** *Arguments that the source is valid and/or reliable* • Web links (within the infographic and in the methodology section) allow researchers to follow-up and verify the authenticity of the source and the researcher/author's credentials. • Source content refers to recognised issues associated with crime, providing clear evidence. • Date of publication is contemporary, which enhances reliability and validity. • The source of the statistics is the Home Office- the Commercial Victimisation Survey, who can be considered extremely trustworthy. • The sample frame is the IDBR, maintained by the ONS- a reputable national organisation. • The sample is 4,800, which is considered to be a reliable and valid size by Ipsos MORI. Sample was stratified and weighted to increase validity. Any other valid point.

Question			Max mark	Detailed marking instructions for this question
				Arguments that the source's validity and/or reliability are questionable • Source has been adapted from the original report and therefore may have been selectively edited. • Independence of government bodies could be questioned. • The figures depict evidence on a range of offences, yet the statistics in the source require clearer citation and explanation in order to evaluate the authenticity. • There is some ambiguity over the images and figures, which call into question the trustworthiness of the source. The arrows are confusing in respect of what is statistically significant. • The information regarding Agriculture, Forestry and Fishing is from 2013 and 2014, which is not directly comparable to the other stats in terms of identifying trends. Source does indicate this, but it is still an issue. • Low response rate of 54%. Any other valid point. **Example of an extract from a response that would meet the minimum standard:** *The source states that the Home Office has produced it. This could be one reason for it to be considered trustworthy as this department of the Government should provide accurate records. However, the government will want to look good in the eyes of it citizens and will want to look as though they have made progress in respect of crime. This source has been adapted and extracted from a much larger report - the selective nature of this means they may have left out some facts or skewed the data to make it look more favourable. This makes it trustworthy to a limited extent. However, overall, the source does seem to be trustworthy to a large extent. It has been produced recently, which makes it valid, and it compares information to previous years' surveys, which makes it reliable.* **[This extract contains two relevant points of evaluation with balanced evaluation of one factor and supporting evidence drawn from the source.]** **Example of an extract from a response that would be considered high quality:** *Taking both validity and reliability into account this source can be considered to be trustworthy to a large extent. The infographic was published by the Home Office, and depicts some of the results of the 2014 Commercial Victimisation Survey. As sources go, this is an extremely reliable one since the organisation has a responsibility to report accurate information, rather than allowing any bias to come through. Additionally, the source itself and the accompanying methodological information, explain a little more fully about the survey as well as providing a link where researchers can find out*

Question			Max mark	Detailed marking instructions for this question
				more about the CVS, which would aid in deciding whether the resource was trustworthy or not. *Furthermore, the statistics are taken from 2014, which makes it valid in a modern context, allowing us to conclude that it does give a true reflection of social reality and a set of statistics that can be trusted. Additionally, the source contains information from both 2012 and 2013 to allow for statistical comparison to be drawn. This allows the researcher to trust that the information has been gathered in a reliable way, as it is clearly repeated on an annual basis. The precision of this source is somewhat limited, however, in that questions about Agriculture, Forestry and Fishing were not asked about prior to 2013. This means that the comparison of these figures and the trends shown between 2013 and 2014 are not comparable with the ones for other types of crime where the trends compare a bigger time gap of 2012 and 2014. This hinders the source's trustworthiness as, although the small print explains this, it creates inaccuracy as the reader may interpret the figures wrongly. The same can be said of the infographic images generally and the inclusion of numerous arrows, which are there to depict the statistical significance of the trends, but do not in fact make clear what the significance actually is. Despite these potential flaws, the source does have many clear positives when it comes to trustworthiness. According to Ipsos MORI the margin of error of a representative sample of 1000 people is plus-or-minus three percentage points, in 95% of cases. This source is from an annual survey, carried out with a sample of 4,800, clearly allowing us to conclude it will be reliable, as a result. The sample was drawn from the Interdepartmental Business Register (IDBR), which is maintained by the Office for National Statistics (ONS). This is widely used as a sample frame for national surveys of businesses, indicating the extent to which it can be seen as trustworthy. The inclusion of a hyperlink in the methodology section also allows us to check this out further, which again increases the trust we can place in the methodology and resultant infographic. That said, there is cause for concern in respect of the fact that businesses with a turnover of less than £79,000 are not included and there is a likelihood that these businesses experiences of crime will be very different to those with much higher turnovers. The source indicates, however, that this is likely to be just 1% of businesses and the results have been weighted and stratified to take account of any potential sampling errors or bias. This significantly increases the validity and reliability of the results presented.* **[This extract contains detailed evaluation and analysis of the trustworthiness of the source with supporting evidence drawn from the source, knowledge of the methodology and appropriate context for the issue.]**

SECTION 3: Social issues, social inequality and research methods.

Question			Max mark	Detailed marking instructions for this question
11.			**30**	Candidates can be credited in a number of ways ***up to a maximum of 30 marks***. **Credit responses that make reference to, for example:** • An explanation of social mobility. • The difficulties social scientists have in studying social mobility. • The role of education in improving mobility. • Different ways to measure poverty including criteria used by governments. • A reference to social stratification and, life chances. • Groups most at risk of experiencing social exclusion. • The cycle of deprivation. • The life cycle of poverty. • Evidence of social mobility in Scotland/UK. • Evidence of a lack of social mobility in Scotland/UK. **Credit responses to aspects of the following**: • Women – glass ceiling and triple shift. • Creation of the Social Mobility and Child Poverty Commission. • An understanding of contemporary definitions of poverty such as absolute, relative, subjective, cultural and environmental poverty. • Inter-generational poverty v intra-generational poverty. • Charles Murray and the New Right support the existence of an Underclass. • Social mobility has stagnated amongst developed western societies. • Developing countries are getting wealthier but the gap between rich and poor continues to increase. Candidates should make reference to relevant global comparator(s) **Possible approaches to answering the question and examples of extracts from responses** • Social inequality occurs when resources in a given society are distributed unevenly along lines of socially defined categories. • Economic inequality is an unequal distribution of income or wealth. • Social class is one's position in society in relation to others and is based on wealth, income, education, and occupation. These characteristics change across time and place.

Question			Max mark	Detailed marking instructions for this question
				• A Marxist approach in explaining social inequality would suggest two major social classes exist, with significant inequality between the two. Both classes are determined by their relationship to the means of production in a given society. Those two classes are defined as the owners of the means of production (bourgeoisie) and those who sell their labour to the owners of the means of production (proletariat). In capitalistic societies, the two classifications represent opposing interests (economic profit versus high wages) and this creates social conflict. Social scientists who adhere to this approach would suggest that social inequality is a natural result of a capitalist society where there are clear winners and losers who constantly struggle for a share of society's resources. • Max Weber uses social classes to examine wealth and status. His explanation for the term "social class" is different and emphasises the importance of prestige and privileges. Weber suggests that social classes remain stable across generations and this perpetuates social inequality. • The New Right explanation for poverty is championed by Charles Murray. He suggests there is an "underclass" in society who have different norms and values to the rest of society. Male role models do not have jobs and rely on state benefits. As a result, primary socialisation occurs and living off benefits is seen as normal. Joblessness persists across generations. • "A culture of poverty" refers to individuals in poverty who develop a way of life and a set of values to cope with their low status in society. They believe that they can do little to change their situation so they may as well as accept it. Many live for the moment and do not save, plan or make decisions about their future. These values are then passed on from parents to children and lock families and communities into a cycle of deprivation. • Social inequality refers to differences in income, wealth, access to education, pension levels and social status. • Variables such as gender, race, ethnicity, and age are thought to have a significant impact on determining one's place or rank in society. • Societies in which merit is the basis for advancement are thought to be more prosperous and equal. • In all countries there are wide disparities in the health status of different social groups. The lower an individual's socio-economic position, the higher their risk of poor health (World Health Organisation). • Increasingly technology is replacing workers in performing routine tasks which has resulted in the diminished power of unions. These changes have reduced costs for many employers yet profits have grown.

Question			Max mark	Detailed marking instructions for this question
				Scotland • Chair of the Social Mobility and Child Poverty Commission, Alan Milburn, recently warned 'there is a risk that Scotland sleepwalks into a social mobility crisis unless urgent action is taken'. • Scottish school leavers from poor backgrounds are a third as likely as others to enter higher education after leaving school, with only one in eight (12.8%) doing so. Additionally, poor students who do enter higher education are half as likely to go to the elite "ancient universities" (8% versus 17% of others). • Those from advantaged social backgrounds are over-represented in Scotland's top professions. An analysis by the Social Mobility and Child Poverty Commission, suggests that almost half (46%) of senior judges in Scotland were educated in private schools compared to only 5% of the population as a whole. • The Commission's report called *Cracking the Code* highlights how schools can improve social mobility. ***The United Kingdom*** • In London, men's life expectancy ranges from 71 years in Tottenham Green ward (Haringey) to 88 years in Queen's Gate (Kensington and Chelsea) – a difference of 17 years. • According to the London Health Observatory, when travelling east from Westminster, each tube stop represents nearly one year of life expectancy lost. • Alan Milburn notes that the UK had become a wealthier society, but has "struggled to become a fairer one" and had more children living in poverty and lower levels of social mobility than "many other developed nations". A total of 2.3 million children (one in six) live in poverty. The pattern where "birth not worth" determined a person's chances in life has largely remained unchanged. • Anthony Seldon, the influential headmaster of Wellington College, has suggested that public schools should offer a quarter of their places to the poorest. Also, Seldon suggests that the very well-off who send their children to the best state schools ought to pay fees. • Sir John Major has warned that in every sphere of British influence, the upper echelons of power are held by a small elite. • Home ownership, a barometer for long-term social mobility, is in decline and the home ownership rate among 25-year-olds has halved in the past two decades. • Only one in five low-paid workers in 2002 had managed to escape low pay by 2012. Five million people, mainly women, earn less than the living wage in the UK. • The current Conservative government believes in meritocracy and that individuals create their own opportunities, "… so no matter where you're from you have the opportunity to make the most of your life." David Cameron.

Question			Max mark	Detailed marking instructions for this question
				I***nternational*** • Maternal mortality is a health indicator that shows wide gaps between rich and poor among countries. • Women in Afghanistan have a lifetime risk of maternal death of 1 in 11, while a woman in Ireland has a risk of 1 in 17,800. • In low-income countries, the average life expectancy is 57, while in high-income countries, it is 80. A child born in Malawi can expect to live for 47 years while a child born in Japan can expect to live 83 years. • Over 800 million people in the world live in slum conditions, representing about one third of the world's urban population. ***China*** • More than 90% of Chinese feel they enjoy a higher standard of living than their parents, but most also feel that social inequality is growing, according to a Pew Global Attitudes Survey. • 81% of Chinese polled agree that today the "rich just get richer while the poor get poorer". • 48% of Chinese describe the gap between rich and poor as a very big problem, up from 41% four years ago. • The World Bank has cited income inequality as one of the main challenges facing China. The report stated that "the sustained increase in income inequality places China at the high end of income inequality among Asian countries". • Chinese inequality is blamed on a lack of income transfer- where tax revenue is invested in infrastructure rather than social welfare programmes. • Government corruption is also believed to explain growing social inequality. ***Russia*** • A report by investment bank Credit Suisse names Russia as having the highest rate of inequality in the world, barring some small Caribbean islands. 35% of household wealth in the country is in the hands of only 110 people. • Putin acknowledges that social mobility is low and income inequality is high. One in eight Russians live below the poverty line with few quality social provisions. Russia's aging population requires a more efficient welfare state. ***Brazil*** • Among BRIC countries, only Brazil has managed to strongly reduce inequality, but the gap between rich and poor is still about five times that of OECD countries. • Inequality exists due to discrimination against certain classes which are largely based on skin colour. Mobility and opportunities favour the more privileged classes.

Question			Max mark	Detailed marking instructions for this question
				An example of an extract from a response that would achieve approximately half marks: *Social inequality is caused by many different factors in Scotland such as one's gender, ethnicity and social class. From these listed, many point to gender as being especially important in determining the power and status one holds in society. Evidence suggests that women do not have the same opportunities as men and face both direct and indirect discrimination throughout their lives. Women bear the burden of working "a triple shift" which involves paid employment, domestic labour such as housework, but also the 'emotional work' of looking after children which is something society does not expect of men. In addition, childcare provision can act as a barrier for someone seeking to work full-time or gain a promotion. Finally, social scientists also point to workplace discrimination as a cause of social inequality. For example, many women are held back by a "glass ceiling" or invisible barrier to promotion which perpetuates the workplace divide between men and women. In addition, researchers have found that men on average earn more than women of similar ages and educational levels. All of this suggests that gender is a key factor in explaining social inequality in society today.* **[This extract contains development of a key aspect related to the question, limited supporting evidence and a reasoned judgement based on the evidence presented.]** **An example of an extract from a response that would be considered high quality:** *While there are many reasons to explain why there is considerable social inequality in the United Kingdom, one reason for its persistence is a lack of social mobility. Britain's stratified society and rigid hierarchy has meant the wealthiest in society retain the greatest share of the rewards. Indeed, life chances are not distributed evenly and equally across different groups in society and these class divisions can be seen in education.* *In a report called Elitist Britain, the Social Mobility and Child Poverty Commission examined the background of 4,000 people with the most wealth, power and influence in Britain and found that the majority of the UK's judges, senior civil servants, military officers and senior diplomats had been privately educated, while only 7 per cent of the general population had gone to private school. This suggests that privately educated pupils have far greater career opportunities than pupils attending state schools.*

Question			Max mark	Detailed marking instructions for this question
				This inherent inequality in education is in sharp contrast to other countries where merit and ability seemingly play a greater role in determining one's life chances. In comparing educational opportunity, for example, to Finland, now regarded as an educational leader, the UK has over 1,200 private schools to Finland's small number of independent schools. But with these independent schools publicly financed in Finland and tuition fees not permitted it means that standards are more universal and evenly distributed. Even in Finnish higher education there are no private universities and tuition fees are unheard of, suggesting that education is meritocratic and equitable. Clearly, with education playing such a significant role in social mobility it is no wonder that social scientists continue to emphasise its importance. As equality in the UK worsens, it is perhaps time for education to be looked at more carefully. Britain's deep social class divisions stand in the path of real mobility and as long as the UK's unequal education system persists, inequality will remain. **[This extract contains detailed and accurate knowledge, up-to-date exemplification, a range of relevant material, insightful analysis and provides context in relation to the information presented.]**

Question			Max mark	Detailed marking instructions for this question
12.			**30**	Candidates can be credited in a number of ways ***up to a maximum of 30 marks***. **Credit responses that make reference to, for example:** • The impact of poverty on children and the elderly. • The link between poverty and poor health. • The link between poverty and educational outcomes. • The link between poverty and social mobility. • The impact on ethnic minorities and women. • The welfare state and its cost. • Progressive versus regressive taxation. • Economic productivity and equality. **Credit responses to aspects of the following:** • Countries with a small gap between rich and poor have better health and lower mortality rates. • Inequality impacts women to a greater extent, as 90% of single parent families are women. • Many suggest that austerity measures have increased inequality. • Traditionally disadvantaged groups such as women and ethnic minorities are more likely to suffer poverty and ill health. • All of society is affected by those who underperform educationally and economically. • Scandinavian countries are known to have progressive taxation policies which narrow the gap. Candidates should make reference to relevant global comparator(s) ***Possible approaches to answering the question and examples of extracts from responses*** • Inequality is the difference in incomes among different people or households, whatever the levels of incomes. • In 2013, the Poverty Action Group estimated that child. • Poverty costs the UK at least £29 billion each year. Of this, £20.5 billion is a direct cost to government resulting from additional demand on services and benefits, as well as reduced tax receipts. • According to Department for Education statistics, by the end of primary school, pupils receiving free school meals are estimated to be almost three terms behind their peers. • By 16, children receiving free school meals achieve 1.7 grades lower at GCSE. • Children from low income families are more likely to die at birth or in infancy than children born into richer families. They are more likely to suffer chronic illness during childhood or to have a disability.

Question			Max mark	Detailed marking instructions for this question
				• Children living in poverty are almost twice as likely to live in bad housing. • In *The Impact of Inequality: How to Make Sick Societies Healthier*, Richard Wilkinson argues that no matter how rich a country is, it will still be more dysfunctional, violent, sick and sad if the gap between social classes grows too wide. Poorer countries with fairer wealth distribution are healthier and happier than richer, more unequal nations. • The *Growing up in Scotland* (2010) report found that children from disadvantaged backgrounds have a wide range of negative health, social, emotional and cognitive outcomes. • The gulf between the rich and poor in Britain costs the economy more than £39bn a year, according to a report by the Equality Trust. The effects of inequality were measured in financial terms through its impact on health, wellbeing and crime rates. • In Joseph E. Stiglitz's *The Price of Inequality*, he argues that "Inequality leads to lower growth and less efficiency. Lack of opportunity means that its most valuable asset — its people — is not being fully used." • According to Nicola Sturgeon, if society had been fairer in the preceding decades the UK economy would have generated an additional £100bn by 2010. • In *The Cost of Inequality: Three Decades of the Super-Rich and the Economy* by Stewart Lansley, he argues that soaring inequality has resulted in slower economic recovery and leaves economies more vulnerable to crisis. • The ever-increasing gulf between rich and poor in Britain is costing the economy more than £39bn a year, according to a report by the Equality Trust think tank. The report puts the annual cost of inequality to the UK at £622 for every man, woman and child, with a total of £12.5bn lost through reduced healthy life expectancy, £25bn lost through poorer mental health, £1bn lost through increased imprisonment figures and £678m lost through an increase in murders. But it points to the incalculable extra benefits of a higher level of community cohesion, trust and social mobility associated with less unequal countries (The Guardian). • "There has to be recognition by politicians, as there already is by economists, that there needs to be a targeted reduction of the gap between the richest and the poorest in order to sustain economic growth", Duncan Exley, Chief Executive of the Equality Trust. • The size and type of family ie large families and lone parent families tend to be at greater risk of poverty because they have higher costs, lower incomes and more difficulty in gaining well paid employment (European Anti-Poverty Network). • 200,000 people in Britain are dying before their time as a result of poverty and social inequality (Sir Michael Marmot).

Question			Max mark	Detailed marking instructions for this question
				South Africa • Around half of South Africa's population lives in poverty and a recent study suggests that only 41% of adults are employed. • Crime is a major consequence of social inequality in South Africa. There are approximately 18,000 murders each year with another 18,000 attempted murders. Over 15,000 house robberies take place each year and, in the province of Gauteng, which includes Johannesburg, the likelihood of being a victim is twice the national average. South Africa is wealthier than neighbouring countries such as Mozambique and Zimbabwe, but crime rates are higher due to high levels of inequality. • The public health system is chronically underfunded and understaffed in South Africa. The wealthiest 20% of the population use the private system and receive higher quality care. In 2005, South Africa spent 8.7% of GDP on health care, of which only 42% was government expenditure suggesting that most health care costs fall on patients. About 79% of doctors in South Africa work in the private sector. ***Sweden*** • In Sweden there are big differences in earnings and these earnings are redistributed through benefits provided by a large welfare state. As a result, Sweden enjoys an advanced welfare system, and their standard of living and life expectancy are almost second to none (BBC). • The Joseph Rowntree Foundation found that Sweden has a high level of youth unemployment and that the level of income related poverty among young adults is high, even among Nordic countries. • Sweden has seen the steepest increase in inequality over the last 15 years amongst the 34 OECD nations. • More conservative governments have slashed taxes and tried to get more of the unemployed back to work. Spending on welfare benefits such as pensions, unemployment and incapacity assistance has fallen by almost a third. • A recent study by the National Board of Health and Welfare in Sweden showed a 25% increase in the number of homeless since 2005.

Question			Max mark	Detailed marking instructions for this question
				Russia • High inequality, especially in some regions of Russia, has been found to negatively affect the health of men especially in term of mortality rates. Life expectancy for women is 76, compared with 65 for men. This is 10 years below the OECD average. • There is still substantial gender inequality in Russia with the earnings of women far behind men and the gap has been widening since 2005. • In *The Politics of Inequality*, Thomas F. Remington studied the link between social spending and the political regimes in Russia's 83 federal territorials. He found that regimes considered more democratic spent less on social welfare programmes. *Any other valid point that meets the criteria described in the general marking principles for this kind of question.* **Example of an extract from a response that would achieve approximately half marks:** *The gap between the rich and poor does undoubtedly impact upon everyone in society. This is most easily seen in the poorest children in society. Poverty has a substantial impact on one's health and educational attainment and costs society roughly £29 billion each year (Child Poverty Action Group). Society loses out on the educational potential of thousands of children every year. There is a 28% attainment gap between children receiving free school meals and those who do not, as measured by GCSE results. With one in four children in the UK living below the poverty line it is clear that social inequality exists to a great extent. In addition to education, poor health is another consequence of social inequality. Men in the poorest areas of England have a life expectancy 9.2 years shorter than men in the least deprived areas. The Guardian reports that for every 10% increase in older people suffering social exclusion, life expectancy falls by six months. Such grim health statistics cause poverty to persist across generations and lead to additional long-term costs for the National Health Service. Professor Harry Burns, the former Chief Medical Officer for Scotland, when trying to explain poor health in Glasgow argued that stress, especially in children, affects the brain and lessens the ability of someone to cope with their surroundings. This is yet another example of the consequences of social inequality which impact children to a much greater extent.* **[This extract contains development of a key aspect related to the question, relevant supporting evidence and a reasoned judgement based on the evidence presented.]**

Question			Max mark	Detailed marking instructions for this question
				Example of an extract that would be considered high quality: *Large gaps between the wealthiest and poorest segments of society have significant and far ranging consequences. Unequal societies have poorer health, higher crime rates, greater levels of discrimination and less competitive economies. While it may be true that the poorest are most impacted by social inequality, society at large also pays a considerable price.* *The costs associated with social inequality have always been difficult to measure, but health care and criminal justice are two such areas where costs rise in response to greater levels of social inequality. Famed British epidemiologist Richard Wilkinson has long argued that no matter how rich a country is, its people will still be more dysfunctional, violent and ultimately sad, if the gap between social classes grows too wide. The United States, according to the OECD ranks as the 4th most unequal society in the world and inequality has risen sharply in the last generation. As the Economist points out, the United States has 5% of the world's population yet 25% of the world's prison population, suggesting that inequality will remain in America for generations. He argues that poorer countries with fairer wealth distribution are healthier and happier than richer, more unequal nations.* *More egalitarian societies such as Norway and Finland tend to have less drug abuse, teenage births, obesity and mental illness in comparison to unequal countries such as the United States and United Kingdom Finland, with a GINI coefficient of 26, has teenage birth rates of 7 per 1000 live births compared to the UK, with a GINI coefficient of 33, which has a teenage birth rate of 19 per 1000. Additionally, social inequality also affects economic competitiveness. According to First Minister Nicola Sturgeon, if British society had been fairer in the preceding decades, the UK economy would have generated an additional £100bn. This clearly indicates that societies that are truly meritocratic, where social class and family background are mitigated as influences in determining one's life chances, have more competitive economies.* *Two such countries thought to have less rigid social stratification are Japan and Finland. In 2014, the World Economic Forum ranked the Finnish and Japanese economies as some of the most productive and advanced in the world, especially in terms of technological innovation. Human development data from the United Nations suggests that Japan has the lowest levels of income inequality out of the twenty-one wealthiest countries. This suggests a strong link between equal societies and economic performance and proves that social inequality has far reaching consequences on all of society, not just the poorest. Equal societies have far greater levels of cohesion and trust, which have immeasurable health and wealth benefits, as a result.* **[This extract contains reference to several key aspects related to the question, detailed evidence, analysis leading to synthesis and comparison of similarity and differences between key factors.]**

Question			Max mark	Detailed marking instructions for this question
13.			**30**	Candidates can be credited in a number of ways ***up to a maximum of 30 marks***. **Credit responses that make reference to, for example:** • The founding principles of the welfare state. • Government strategies to reduce social inequality. • Government programmes to reduce wealth inequality. • Government programmes to reduce health inequality. • Groups in society most at risk of experiencing poverty. • Inequality in Scotland/UK examined alongside inequality in international comparator countries. • The impact of austerity within the UK and in international comparator countries. • Collectivist versus individualist approaches to welfare provision. **Credit responses to aspects of the following:** • Collectivism, comprehensive, equality, universal. • Ignorance (education), Squalor (Housing), Want (Poverty), Idleness (Unemployment) and Disease (Health). • NMW, National Living Wage. • Social Mobility and Child Poverty Commission. • Equality Act (2010). • Universal credit. • Child benefit. • Free school meals. • Modern Apprenticeships. • Big Society. *Candidates should make reference relevant global comparator(s).* **Possible approaches to answering the question and examples of extracts from responses** ***Scotland*** • The Scottish Government's child poverty strategy (2014) is built around three outcomes 'pockets, prospects, places'. • According to the public sector union UNISON, "The NMW has helped outlaw blatant exploitation and the tax credit system has helped boost the pay of thousands of low paid workers. But despite this, the Scottish Low Pay Unit estimates that over 350,000 full-time workers are low paid. The existence of so many low paid jobs traps individuals and families in poverty, denying the opportunities and choices that should be for everyone in a country as wealthy as Scotland."

Question			Max mark	Detailed marking instructions for this question
				• Schoolchildren from Scotland's poorest neighbourhoods are falling further behind pupils from the wealthiest homes according to recent examination data. • All 32 Scottish councils show children in the least well-off areas are seven times less likely to get the right grades for university than those from the most affluent neighbourhoods. • Scotland's wealthiest households are now 273-times better off than the most deprived, according to Oxfam. The authors of the report said that "Scotland is one of the most unequal societies in the developed world. These deepening inequalities are accentuated by the declining progressivity of the UK tax and benefits system - which should address rather than exacerbate inequality." • Figures from 2013 showed the number of people living in relative poverty had fallen slightly, from 780,000 in 2010/11 to 710,000 in 2011/12. But the statistics showed there had also been a fall in the average household earnings in Scotland. • According to the Poverty Site the richest tenth of the Scottish population have seen much bigger proportional rises in their incomes than other groups in society. **The United Kingdom** **Legislation** • The *Child Poverty Act 2010* sets out UK-wide targets relating to the eradication of child poverty. It states that it is the duty of the UK Government to ensure that child poverty targets are met by 2020. The Act also created the Social Mobility and Child Poverty Commission. • The *Equality Act of 2010* simplifies, strengthens and harmonises existing legislation and protects individuals from unfair treatment and promotes a fair and more equal society. **Social Mobility and Child Poverty Commission** • The Commission publishes an annual report setting out its views on progress made in improving social mobility and reducing child poverty in the UK, including against the targets in the *Child Poverty Act 2010*. • It provides advice to ministers (at their request), including how to measure socio-economic disadvantage, social mobility and child poverty. • The Commission acts as advocate for social mobility beyond government by challenging employers, the professions and universities, amongst others, to play their part in improving life chances.

Question			Max mark	Detailed marking instructions for this question
				The National Minimum Wage (NMW) • In 2014 the National Minimum Wage rose for all age groups with those over 21 seeing the largest rise from £6.31 to £6.50. • The Low Pay Commission Report claimed that the NMW applies to over 1.3 workers and it has reduced the gender inequality gap as women account for 59 percent of low paid jobs. • Frances O'Grady, the general secretary of the TUC, said the rate increases go "nowhere near enough to end in-work poverty", and should have been "much bolder". • Paul Kenny, GMB General Secretary, said "The additional 20p per hour for 1.4 million lower paid workers is welcome but as the Chancellor recognized £6.70 per hour is not a living wage." • *The Daily Telegraph* reports that 149 firms, from high-street giants to small local companies, don't pay minimum wage. • *In July 2015, George Osbourne announced the introduction of a National Living Wage to replace NMW for over 25s (not to be confused with the Living Wage Campaign).* It will start at £7.20 in April 2016 and rise to £9 an hour by 2020. • *The Living Wage Campaign, by the Living Wage Foundation, is different and encourages businesses to sign up to pay a living wage to their employees.* 1600 employers already do this- HSBC, Aviva, Barclays, The Scottish Government, Heart of Midlothian Football Club. The 2015-16 Living Wage is £8.25 per hour. **The Claimant Commitment and Work Programme** • Just one in 10 people have been helped back to work by the government's £5billion flagship scheme leading to accusations that the programme is "worse than doing nothing". • Jobseeker's Allowance (JSA) is a form of unemployment benefit paid by the Government of the United Kingdom to people who are unemployed and actively seeking work. It is part of the social security benefits system and is intended to cover living expenses while the claimant is out of work. • Roughly 2% of welfare expenditure in the UK is spent on Jobseeker's Allowance; the bulk is spent in other areas. • There have been significant criticisms of this new programme, on account of the sanctions that lie at the heart of it. **Tax Credits** • The Working Tax Credit (WTC) applies for those in work and the Child Tax Credit (CTC) for those with children. Tax credits are gradually being included within Universal Credit. • The government is also doubling the amount of free childcare available to working parents of three and four-year olds, from 2016. It says 600,000 families will benefit. It will be worth an extra £2,500 a year.

Question			Max mark	Detailed marking instructions for this question
				• The Institute for Fiscal Studies has said that three million families are likely to lose an average of £1,000 a year, as a result of changes to tax credits. • In 2015, the House of Lords voted to delay the changes proposed by the Conservative government. **Jobcentre Plus** • Jobcentre Plus is a government agency which provides assistance to the unemployed looking for work. It provides a market for job vacancies and assistance with opportunities to help the unemployed gain more skills. • Jobcentre Plus also provides help to those seeking to navigate the process of claiming financial assistance due illness or disability. • In 2013, Jobcentre Plus employed 37,000 people and cost £1.4bn to maintain. Staff handle about 3.6 million new claims for jobseeker's allowance every year. • Parliament examined Jobcentre Plus performance in 2011-12 and MPs concluded that it had "coped well" with the increase in claimant numbers caused by the economic downturn by focusing more resources on determining eligibility and processing payments. • Ministers conclude that job centres were regarded as "good value for money". • The Parliamentary report did however also claim that the criteria used to assess the success of Jobcentre Plus in helping people find work is "flawed". In 2013 40% of claimants found themselves back on benefits within six months and 60% within two years suggesting Jobcentre Plus has not found success addressing longer term unemployment. • The Personal Independence Payment (PIP) helps with some of the extra costs caused by long-term ill-health or disability for people between the ages 16 and 64. Recipients can receive between £21.80 and £139.75 a week. • Universal Credit is a means-tested benefit for people of working-age who are on a low income. It replaces six existing means-tested benefits: Income Support, Income-based Jobseeker's Allowance, Income-related Employment and Support Allowance, Housing Benefit, Child Tax Credit, and Working Tax Credit, Universal Credit is intended to be simpler than the current system of benefits and tax credits. • The benefits cap is a limit of what people can collect in benefits from the Government. Currently it is £500 a week for couples (with or without children living with them), £500 a week for single parents whose children live with them and £350 a week for single adults who don't have children, or whose children don't live with them.

Question			Max mark	Detailed marking instructions for this question
				• David Cameron's Big Society Initiative launched in 2010 was designed to give communities more powers (localism and devolution), encourage people to take a more active role in their communities (volunteerism), transfer power from central to local government, support charities and social enterprise and to make government more transparent. • Since April 2013 there have been new rules in Housing Benefit for working-age people living in social housing. The new rules allow those on low income to receive Housing Benefit based on the number of people in their household and the size of their accommodation. • The Spare Room Subsidy- UK v. Scottish government fund to mitigate the impact of it? **The United States** • More than 45 million Americans are currently living in poverty. • Without social security, the poverty rate for Americans 65 and older would jump nearly 40%. • The official poverty rate in the US is 14.5%. That is equivalent to 45.3 million people. • Without food stamps, the poverty rate would be 17.10% – another 8 million Americans would be living in poverty. • Without social security, the poverty rate for Americans 65 and older would be 52.67% instead of the current 14.6%. • This suggests that government programmes to reduce poverty in the USA are in fact working. **South Africa** • 3.6 million South Africans have been rescued from poverty and income inequality has been reduced by one-quarter through the use of taxes and social grants in 2010/11. • South Africa has had more success in using fiscal policy tools to reduce inequality and poverty than 11 peer countries. • A report from the World Bank shows that the poorest in South Africa benefit from social spending programs. About 70% of outlays on social grants and 54% of spending on education and health go to the poorest half of the population in South Africa. • Cash grants and free basic services lift the incomes of some 3.6 million individuals above $2.50 a day (PPP). The rate of extreme poverty, measured as the share of the population living on $1.25 per day or less, is cut by half from 34.4 to 16.5%. The child support grant and old age pension make the largest impact on poverty.

Question			Max mark	Detailed marking instructions for this question
				Romania • Romania has the highest poverty rate in the European Union. Over 21% of Romanians live below the national poverty threshold. Three-quarters of the poor have been poor for at least three years, which means that poverty is persistent. • In 2012, it was estimated that 5.9 million Romanians (or half of the active population) were being given a form of welfare. *Any other valid point that meets the criteria described in the general marking principles for this kind of question.* **Example of an extract from a response that would receive half marks:** *The welfare state in the United Kingdom was designed to be comprehensive, universal, equal and collectivist in scope. Originally aimed at tackling the Five Giants thought to stand in the way of a fair and just society, it has had to change to meet the society it serves. A National Minimum Wage (NMW) was introduced in 1999 in order to guarantee a basic wage for the lowest earners in society. Set to rise gradually each year to keep up with inflation, the NMW was thought to be one of the single most successful government policies to combat social inequality in the United Kingdom. Studies indicate that the NMW has helped women in particular, as a greater percentage of low paid jobs are filled by women. The NMW has also helped close the pay gap which exists between white workers and workers from ethnic minority groups. The recently announced changes to make this a National Living Wage is likely to further benefit these groups and can be seen as a positive step in reducing the progression of inequality. These developments suggest that recent government action to reduce social inequality has benefited society's most vulnerable groups.* **[This extract contains development of a key aspect related to the question, limited supporting evidence and a reasoned judgement based on the evidence presented.]**

Question			Max mark	Detailed marking instructions for this question
				Example of an extract from a response that would be considered high quality: *To suggest that welfare programmes in the United Kingdom have slowed social inequality in recent years ignores the reality of one of Europe's most unequal countries. While some aspects of the welfare state deserve praise such as the National Health Service (NHS), thought to be one of the finest universal health care systems in the world, other aspects of the welfare state have clearly failed to slow social inequality.* *Conservative government austerity measures have resulted in cuts to welfare and these cuts, among other factors, have worsened the inequality in British society. The wealthiest Britons have seen significant rises to their incomes in comparison to other groups in society and this has led to growing wealth and health inequality. The wealthiest 1,000 families in the UK have doubled their net worth since 2009 and own more than the poorest 40% of British households, according to the Guardian. While recent legislative efforts such as the Child Poverty Act of 2010 are an example of government action, the welfare state in the UK has never been as generous as Scandinavian models and likely never will be.* *The Conservative-led coalition have set out to reform benefits by designing a universal credit system that will eventually replace all working-age benefits by 2017. This single payment system for the unemployed and for low earners is meant to be simpler to use and has gained the support of many politicians from the left and right. With around 50 total benefits merged into one and the programme operating £600 million under budget, it hopes to reward work and allow those trapped in poverty to escape. It may very well save the Government money and be an example of a more efficient welfare state, but whether it will slow the progression of social inequality is doubtful. The Institute for Fiscal Studies (IFS) claims universal credit will not be enough to be prevent a decade of rising poverty. Both absolute and relative child poverty are forecast to be 23% and 24% in 2020-21 respectively. This is much higher than the targets of 5% and 10% which are set out in the Child Poverty Act (2010) which passed with cross-party support. If the Institute for Fiscal Studies' projections prove true, this would be the highest rate of absolute child poverty since 2001-02 and the highest rate of relative child poverty since 1999-2000. Even if employment rises more than expected due to the Universal Credit, the IFS concludes that it cannot be relied upon to make a large difference in poverty rates. Therefore, even though the welfare state is going through considerable reform and legislative action is occurring to help the unemployed and poorer households, it is unlikely that such reforms will slow social inequality in the United Kingdom.* **[This extract contains detailed and accurate knowledge, up-to-date exemplification, a range of relevant material, insightful analysis and provides context in relation to the information presented.]**

Question			Max mark	Detailed marking instructions for this question
14.			**15**	*Candidates can be credited in a number of ways* ***up to a maximum of 15 marks****.* **Expect reference to the following in critical evaluation of Covert Participant Observation:** **Covert Participant Observation** ***may be appropriate because:*** • In the case of covert observation, the researcher's status is not made known to the group. This allows the researcher to avoid the problem of the Observer/Hawthorne Effect. • Validity is increased, since the researcher is more likely to observe natural behaviour representative of a small social group. • By becoming a member of a group, the researcher can personally experience the thought processes that employers go through and understand the motives and meanings of people's behaviour from the viewpoint of those involved in the behaviour being studied. This gives a researcher insight into individual and group behaviour - it may allow researchers to formulate hypotheses that explain such behaviour. • Quality and depth of information gained is significant. This method gives real 'verstehen' which is not possible via quantitative methodologies. • Arguably the only way to gain the information on this particular topic- access to social groups who would otherwise not consent to being studied. For example, Mark Daly went undercover in the Secret Policeman which investigated discrimination and racism within the police. A 2013 BBC investigation on letting agents prepared to discriminate against would-be tenants on the grounds of race. **Covert Participant Observation** ***may be less appropriate because:*** • It could be difficult to gain access and maintain cover in the group. If a researcher is too young, too old, too male or too female for the group they want to research, this will cause problems of participation. The researcher's ability to blend seamlessly into a group is absolutely crucial. It is extremely difficult to do this in respect of workplace discrimination. Monaghan (2002) and Sanders' (2005) work on bouncers, Shulman's (2007) work on lying in the workplace - From Hire to Liar. • The method is fraught with potential difficulty and dangers of taking part in the activity and observing simultaneously.

Question			Max mark	Detailed marking instructions for this question
				• This method leaves the researcher unable to conduct interviews, ask questions and openly record data. • The ethical disadvantages of deceiving a group and invasion of privacy, which could end in mental or physical harm. Undercover Teacher- Channel 4 Dispatches documentary. Alex Dolan was struck off for breaching student trust. Employment Appeal Tribunal (EAT) in Vaughan v London Borough of Lewisham- Vaughan made 39 hours' worth of covert recordings of conversations between herself and her managers and colleagues. The EAT described the practice of covert recordings as "very distasteful" but said that this did not mean recordings made covertly had to be excluded as evidence. • The method is unlikely to get consistent or comparable results on a large scale, since the data gathered is qualitative and there are variations between different small groups. Undercover Boss- Channel 4 documentary. The undercover research was specific in each episode to the individual company and employees being covertly studied. • Issues of going native/becoming attached to the group. Also seen in Undercover Boss, where one of the results of the documentary was to reward decent employees, as well as spotting problems, and the Bosses often became attached to a small number. • Time and cost considerations. • Most participant observation is restricted to fairly small-scale studies carried out over a long period and the group being studied is unlikely to be representative of any other social group. Not generalisable to the whole population across the UK. • While the Hawthorne effect is not fully at play, the ability to impact upon behaviour even when covert remains. ***Alternative research methods which could be considered and evaluated:*** Expect consideration and evaluation of one or more of the following alternative research methods: • Other forms of observation - overt, non-participant. • Surveys/questionnaires. • Unstructured/structured interviews. • Focus groups. • Official documents and reports, eg British Social Attitudes (BSA) survey, Sex discrimination and gender pay gap report of the Equality and Human Rights Commission, Is Britain Fairer? Report by the Equality and Human Rights Commission, Think, Act, Report- Government Equalities Office. *Credit can be given for any other valid point that meets the criteria described in the general marking principles for this kind of question.*

Question			Max mark	Detailed marking instructions for this question
				Example of an extract from a response that would achieve approximately half marks: *Covert participant observation would be appropriate for investigating inequalities and discrimination in the UK, as it would allow the researcher to learn about the behaviour of those involved in this directly, by witnessing and/or taking part in it. This would generate high quality information, allowing the researcher to gain a deep understanding of the motives behind discriminatory behaviour. By being involved as an ordinary member of a group, for example a group of employees within a big company, the researcher can personally experience the thought processes that colleagues go through and the viewpoint of those involved in the behaviour being studied. This was a clear positive in the work done in the Undercover Boss documentary series, where company owners pretended to be ordinary employees to see how they behaved towards one another and customers, for example. Additionally, because the investigator is covert, or undercover, the people being observed behave normally and do not change their behaviour. They are not affected by the Observer effect, where they might alter what they do because they know they are being watched. This means the information the researcher gathers is much more likely to be true and correct. As such, this could be seen as the best way to research such a topic.* **[This extract contains two points of evaluation with straightforward supporting evidence.]** **Example of an extract from a response that would be considered high quality:** *On one hand, covert participant observation could be seen as being clearly the best method for investigating discrimination and inequality in the UK. This method allows the researcher to study a group that would otherwise be completely out with their reach and scope. In a topic area as contentious as this, it would be difficult to gain the required access as the group are likely to be suspicious of anyone observing them overtly and are likely to be engaged in activity that they do not want exposed, on account of it being legislated against in the Equality Act 2010. With that said, it is clear that covert participant observation is the most appropriate method to use. Having said that, the principal positive of this method is also the very thing that warrants it less useful as a methodology. When observing covertly, the researcher is left unable to conduct interviews, ask really probing questions or openly record data. This can mean that the data gathered by such a piece of research is open to all manner of concerns in respect of validity and reliability, most notably whether the evidence is actually a true reflection of reality or not. An alternative method that would perhaps, therefore, be more appropriate would be to survey members of society about their experiences of discrimination and what they perceive to be the reasons behind it.*

Question			Max mark	Detailed marking instructions for this question
				This would allow the researcher to produce statistical evidence of a quantitative nature, allowing them to draw conclusions about behaviour on a wider basis than just one workforce or sub-section of society, for example, which may not be representative of all. In addition to this, official statistics could be gathered to investigate the extent to which discrimination is apparent in certain sub-sets of society. For example, a report produced by the Coalition for Racial Equality and Rights (CRER) in 2015 found that just 0.8% of staff in all of Scotland's local authorities are from BME backgrounds - despite making up 4% of the general population of Scotland. This would allow researchers to compare their findings with national statistics and official reports to confirm the picture was in fact correct. Studying one group in just one of these places may well have given a deeper understanding, or 'verstehen', of the problems, but would not necessarily produce information that was generalisable to the whole population. *Additionally, it is important to be aware of the greater ethical considerations related to a method such as covert participant observation. Ethics are a crucial part of any research and need to be taken in account in carrying out any research. The British Sociological Association has strict guidelines in relation to ethics and these are far more significant in respect of methods involving observation, which tend to delve further into people's lives and viewpoints, than methods aimed at gathering statistics. The Research Ethics Framework (REF) states that covert research may be undertaken when it provides unique forms of evidence or where overt observation might alter the phenomenon being studied. In the Dispatches Undercover Teacher documentary this was seen by the producers to be the case: they would have been unlikely to uncover the discriminatory behaviour of pupils towards one another or to staff if acting overtly. However, when it came to light that Alex Dolan had been operating undercover, the General Teaching Council took steps to ban her from the profession for a year, on account of professional misconduct and the fact that she had breached the trust of pupils, as well as colleagues and management. The degree of potential harm in this instance, with young pupils being a major part of her study, was significant. In investigating the extent of discrimination and inequality in the UK, therefore, from an ethical standpoint, methods other than participant observation would be much more preferable.* **[This extract contains two points of balanced evaluation of the appropriateness of the methods with detailed analysis and synthesis of relevant exemplification.]**

Question			Max mark	Detailed marking instructions for this question
15.			**15**	**Credit evaluation of the consequences of the following in critical evaluation of the source:** • Author is the Trussell Trust. • Comment on independence and reliability of authors. • Inclusion of website link easily allow further research. • NGO posts reflect research, but also tend to show partiality and bias. • Date of publication. • Inclusion of supporting figures and empirical evidence. • Information that is excluded from the source. • Ambiguity of presented detail in infographic. • Detail re: methodology - potential issues with data collection. • Specific issues about the source which support or detract from its validity. *Any other valid point that meets the criteria described in the general marking principles for this kind of question.* **Possible approach to answering the question:** *Arguments that the source is valid and/or reliable* • Web links (within the methodology section) allow researchers to follow-up and verify the authenticity of the source and the researcher/author's credentials, as well as the ONS guidance and the advisor's credentials. • Source content refers to recognised issues associated with poverty, providing clear evidence. • Date of publication is contemporary, which enhances reliability and validity. • The source of the statistics is the Trussell Trust- a well-recognised NGO, who can be considered extremely trustworthy. • The sample frame is their own data collection system, evidence presented drawn from this and designed to meet standards based on guidance from the ONS- a reputable national organisation. Any other valid point. *Arguments that the source's validity and/or reliability are questionable* • Source has been adapted from the original report and, therefore, may have been selectively edited. The inclusion of just four areas, rather than all regions of the country, for example, is not explained.

Question			Max mark	Detailed marking instructions for this question
				• Independence of NGOs could be questioned. They have their own agenda to progress. • Date is based on the Trussell Trust's online data collection system into which foodbanks enter the data from each foodbank voucher. This relies on volunteers to be consistent with date entry, which is perhaps questionable. • The figures depict evidence, yet the statistics in the source require clearer citation and explanation in order to evaluate the authenticity. • There is some ambiguity over the figures regarding the primary referral causes, which call into question the trustworthiness of the source. • Relevance of some of the statistics could be questioned. Any other valid point. **Example of an extract from a response that would meet the minimum standard** *The source states that The Trussell Trust charity has produced it. This could be one reason for it to be considered trustworthy, as it is a well-known and recognised organisation, which has received a lot of press coverage in recent years because of the increased use of food banks. The information in the source seems to fit with the picture being presented nationally so can be trusted to quite a large extent. However, the researcher must remember that as the Trussell Trust is a charity, it has an agenda to follow and this could call some of the statistics into question. The Conservative government would probably argue that these figures are not necessarily correct or reflective of the real situation. On top of this, the source has been adapted and extracted from a much larger report. The selective nature of this means they may have left out some facts or skewed the data to make it look more favourable to the cause they are trying to further. This makes it trustworthy to a lesser extent.* **[This extract contains two relevant points of evaluation with balanced evaluation of one factor and supporting evidence drawn from the source.]** **Example of an extract from a response that would be considered high quality** *Taking both validity and reliability into account this source can be considered to be trustworthy to a large extent. The infographic was published by the Trussell Trust and depicts a range of statistical evidence showing the number of users of their food banks over a one-year period. The information has been gathered via their own system of data collection, which is utilised across all of their sites: this should ensure that the statistics are reliable. Additionally, the source itself and the accompanying methodological information, explain a little more fully that Trussell Trust data collection complies with ONS guidance and that they receive advice on this*

Question			Max mark	Detailed marking instructions for this question
				from a former senior government statistician. *This increases the extent to which the source can be trusted to a significant degree, as the ONS is a reputable organisation and one would hope that the government statistician would be well-versed in ensuring the statistics are produced in a way that is accurate. That said, there are a number of concerns in this respect. The advisor is a former senior government statistician, rather than a current one. The extent to which his advice, therefore, continues to fit with guidelines could be questioned, as well as the extent to which the Trussell Trust listen to and act upon said advice. More concerning, however, is the fact that the information is gathered and submitted by people who are volunteers at the food banks. This relies on consistency across the entire country in the data collection and this is likely to be questionable. Regardless of this, The Trussell Trust publishes figures on the use of their foodbanks annually and half-yearly, which allows the researcher to check the statistics represented here with previous publication rounds. The ability to compare and contrast trends should highlight any significant problems in this area.* *Furthermore, the statistics are taken from 2014-2015, which makes it valid in a modern context, allowing us to conclude that it does give a true reflection of social reality and a set of statistics that can be trusted. Additionally, the source contains the annual figures from 2008-2009 onwards, to allow for statistical comparison to be drawn. This allows the researcher to trust that the information has been gathered in a reliable way, as it is clearly repeated on an annual basis. The precision of this source is somewhat limited, however, in that regional information is provided for Scotland, Wales, Ireland and North East, but not the other regions of England. There is no explanation as to why the others have been omitted nor whether these are included on account of being the highest or lowest figures. Additionally, these appear to be raw figures for number of users and are not tied to the population size of these regions. This makes it difficult for us to draw conclusions and to trust the information presented, as a result.* *Despite these potential flaws, the source does have many clear positives when it comes to trustworthiness. The inclusion of a number of hyperlinks in the methodology section allows us to check into the information presented further, which again increases the trust we can place in the methodology and resultant infographic.* There is a link to the original report, the former government advisor and what the ONS' guidance is and these certainly add to this. **[This extract contains detailed evaluation and analysis of the trustworthiness of the source with supporting evidence drawn from the source and knowledge of the methodology and context of the issue.]**

[END OF MARKING INSTRUCTIONS]